

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T. REYES II
HEARING DATE: 06/24/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=NOV1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01321
CASE NAME: MARTHA CAUCH VS. HOME DEPOT U.S.A., INC.
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference previously trailed a hearing on a pleadings motion. Since the Motion was canceled, this CMC is continued to November 4, 2026, at 9:00 a.m. to trail the hearing on Defendants Motion to Strike Costs. No appearance is required on June 24, 2026.

2. 9:00 AM CASE NUMBER: C25-01525
CASE NAME: MARAT VALIULLIN VS. DAVID STALLWORTH
*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing for Line 20. If Line 20 is uncontested, no appearance is required and this CMC will be continued to December 22, 2026 at 8:30 a.m.

3. 9:00 AM CASE NUMBER: C25-03334
CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,
*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing for Lines 9 and 10. If Lines 9 and 10 are uncontested, no appearance is required and this CMC will be continued to December 22, 2026 at 8:30 a.m.

4. 9:00 AM CASE NUMBER: MSC22-00021
CASE NAME: O'CAIN, JR. VS SHIELDS NURSING CENTER, INC.
*FURTHER CASE MANAGEMENT CONFERENCE TO TRAIL MOTION FOR SUMMARY JUDGMENT

FILED BY:

TENTATIVE RULING:

This Case Management Conference trails the hearing for Line 16. If Line 16 is uncontested, no appearance is required and this CMC will be continued to September 29, 2026 at 8:30 a.m.

Law & Motion

5. 9:00 AM CASE NUMBER: C23-00916
CASE NAME: VANESSA ALLEN VS. ACES 2020 I, LLC
*HEARING ON MOTION IN RE: ATTORNEY FEES

FILED BY: ALLEN, VANESSA MARIE

TENTATIVE RULING:

Summary

Plaintiffs Vanessa Allen, Annalise Corona, Sarah Marie Hooker, and Kaleigh Walker's ("Plaintiffs") Motion for Attorney's Fees and costs in the amount of \$151,242.75 against Defendant against Defendant ACES 2020 I LLC ("Defendant") is **granted** in the **reduced** by fifty percent (50%) to the amount of \$75,621.38, plus costs of \$9,906.50, for a total award of \$85,527.88

Background

Plaintiffs seek attorney's fees and costs as prevailing parties against Defendant pursuant to Code of Civil Procedure Section 1021.5 and Labor Code Sections 218.5, 226(e), 1194, 2699(g)(1), and 2802. Plaintiffs filed this wage-and-hour action on April 22, 2023, alleging violations of minimum wage, overtime, meal and rest period, wage statement, and expense reimbursement laws, along with UCL

and PAGA claims.

On May 15, 2025, Plaintiffs accepted Defendant's Code of Civil Procedure Section 998 settlement offers, rendering Plaintiffs the prevailing party. Under the settlement terms, Defendant agreed to pay reasonable attorney's fees and costs incurred through March 26, 2025, either by agreement or court award. Plaintiffs now seek \$151,242.75 in fees (230.65 attorney hours, 48.4 paralegal hours through March 26, 2025, plus 16 hours drafting this motion) at rates ranging from \$495 to \$850 per hour, plus \$9,906.50 in costs, totaling \$161,149.25. Plaintiffs disclaim any multiplier.

Defendant opposes, arguing the requested fees are grossly disproportionate to the \$34,790 net recovery for four individuals (less than 6% of calculated exposure). Defendant contends Plaintiffs achieved limited success: their PAGA claims were extinguished by *res judicata* following approval of the prior *Kaur* Action settlement (\$1,715,000), and Plaintiffs dismissed their PAGA claims without prejudice without litigating representative claims. Defendant further argues counsel performed minimal work—filing no motions, serving only duplicated discovery, and making only routine case management appearances (missing one). Defendant challenges billing records as unreliable, citing entries for different matters, double-billed costs, block billing, and vague entries. Defendant specifically identifies allegedly excessive time: 5.9 hours for a routine Labor Code Section 1198.5 personnel file demand, 24 hours (among four attorneys) to draft a complaint copying the *Kaur* complaint verbatim (including typographical errors), and 11 hours on opt-out tasks Defendant deems unnecessary.

Defendant's request for judicial notice is granted without opposition, subject to limitations. (Evid. Code §§ 452, 453; *Linda Vista Village San Diego Homeowner's Association, Inc. v. Tecolote Investors, LLC* (2015) 234 Cal.App.4th 166, 184 ["Judicial notice may be taken of the fact of a document's recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document's legally operative language, assuming there is no genuine dispute regarding the document's authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face." see also *People v. Franklin* (2016) 63 Cal.4th 261, 280 ["A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments."] [quoting *Day v. Sharp* (1975) 50 Cal.App.3d 904, 914].)

ANALYSES

California wage-and-hour statutes contain fee-shifting provisions authorizing reasonable attorney's fees to prevailing employees to vindicate public policies and make claimants whole. Labor Code Sections 218.5 and 1194(a) provide fee entitlements for minimum wage and overtime violations (*Cruz v. Fusion Buffet, Inc.* (2020) 57 Cal.App.5th 221, 230, 245). Section 218.5 similarly covers meal and rest period premiums (*Betancourt v. OS Restaurant Services, LLC* (2022) 83 Cal.App.5th 132, 140). Section 226(e) authorizes fees for wage statement violations; Section 2802(c) for expense reimbursement; and Section 2699(g)(1) for PAGA claims. Where UCL claims under Business and Professions Code Section 17200 et seq. are predicated on wage violations with independent fee entitlements, fees are recoverable.

Courts apply the *Lodestar* method: hours reasonably expended multiplied by reasonable hourly rates prevailing in the community (*Marshall v. Webster* (2020) 54 Cal.App.5th 275, 285, citing *Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321). The California Supreme Court approved this method as "the only way of approaching the problem that can claim objectivity" (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131, citing *Serrano v. Priest* (1977) 20 Cal.3d 25, 48, fn. 23). The *Lodestar* formula may be adjusted by a multiplier reflecting contingent risk, results achieved, complexity, and skill. The relevant community is where the court is located (*Marshall* , at p. 285, citing *Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc.* (2014) 226 Cal.App.4th 26, 71)—here, the San Francisco Bay Area. The Court has wide discretion to adjust attorney's fees requested based on the *Lodestar* factors.

After considering the position of the Parties in light of the applicable statutory and decisional authority, the Court finds good cause to grant attorney's fees with adjustments. Good cause appearing, the Court makes the following orders.

RULING

1. The Court finds Plaintiffs are prevailing parties entitled to fees under the applicable statutes. However, the Court finds the requested lodestar of \$151,242.75 are unreasonable considering the limited success achieved, minimal litigation activity, and billing deficiencies identified by Defendant.
2. While Plaintiffs obtained a favorable settlement on individual claims, they did not prevail on any PAGA claims, which were dismissed without prejudice after being extinguished by res judicata. This significantly reduces the scope of the "success" achieved. The Court also finds merit in Defendant's objections to billing practices: the 24 hours (among four attorneys) to draft a complaint largely duplicative of the Kaur complaint, 5.9 hours for a routine personnel file request, and 11 hours for opt-out tasks represent inefficient and duplicative billing that would not be compensable at full rates.
3. The Court finds that the billable rates of \$495–\$850 per hour are reasonable for the San Francisco Bay Area market but finds the hours claimed excessive by approximately 50%. Accordingly, the Court reduces the *Lodestar* from \$151,242.75 to \$75,621.38 to account for limited success on PAGA claims, block billing, vague entries, and inefficient duplication of work. The Court awards costs of \$9,906.50 as requested. The total award is \$85,527.88 from Defendant. Such fees and costs are due no later than thirty (30) days from Notice of Entry of this Order.
4. Plaintiffs' attorneys are ordered to e-file a proposed order conforming to this ruling, attaching a copy of this ruling, no later than five (5) court days from the date of this hearing.

6. 9:00 AM CASE NUMBER: C23-02821
CASE NAME: LESLEY HOWARD VS. LIBERTY ASSOCIATES GROUP, LLC
***HEARING ON MOTION IN RE: FINAL APPROVAL HEARING SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:
Summary

The Motion for Final Approval of this Class Action and PAGA Settlement is **granted** and approved as

set forth herein. No appearance is required at the hearing on June 24, 2026.

Background

Plaintiff Lesley Howard ("Plaintiff") seeks final approval of a non-reversionary Gross Settlement Amount of \$1,000,000.00 for this class action and PAGA settlement against Defendant Liberty Associates Group, LLP ("Defendant.") The total financial components include \$100,000.00 in civil penalties under the Private Attorneys' General Act (PAGA), \$333,333.33 in attorneys' fees for Class Counsel, \$20,482.07 in litigation costs, \$24,000.00 in settlement administration expenses to Phoenix Settlement Administration, and a \$10,000.00 Class Representative Service Payment to Plaintiff Howard. The question before this Court is whether the settlement terms are fair and reasonable.

The \$100,000.00 in PAGA civil penalties is divided equally between two distinct time periods. For the Pre-Amendment Portion covering November 16, 2022 through June 18, 2024, \$50,000.00 is allocated with 75% (\$37,500.00) payable to the California Labor and Workforce Development Agency (LWDA) and 25% (\$12,500.00) distributable to Aggrieved Employees based on the number of pay periods worked during that timeframe. For the Post-Amendment Portion, the remaining \$50,000.00 is similarly allocated with 65% (\$32,500.00) going to the LWDA and 35% (\$17,500.00) distributed to Aggrieved Employees based on their pay periods worked during that later period.

The settlement provides compensation for legal representation and administrative costs. Class Counsel will receive \$333,333.33 in attorneys' fees plus \$20,482.07 in litigation costs reimbursement. The settlement administrator, Phoenix Settlement Administration, will receive \$24,000.00 for expenses incurred in administering the settlement. Additionally, Plaintiff Lesley Howard will receive a \$10,000.00 service payment for her role as Class Representative.

Distribution to Aggrieved Employees under the PAGA claims is calculated based on the number of pay periods each employee worked during the respective Pre-Amendment and Post-Amendment periods. This allocation method ensures that employees who worked more pay periods receive proportionally larger shares of the employee portions of the civil penalties.

After deducting all attorneys' fees, costs, the class representative payment, settlement administration expenses, and the LWDA's share of PAGA penalties, the remaining Net Settlement Amount will be distributed to 2,253 Participating Class Members, who are those who did not opt out of the settlement. These class members will receive distributions calculated based on the number of weeks they worked during the Class Period.

The settlement includes standard non-admission language, providing that neither the settlement itself nor any action taken to carry out its terms constitutes an admission of wrongdoing, fault, or liability by the defendant. The Court's approval does not constitute a finding regarding the validity of any claims, and the settlement may not be used as evidence of any wrongdoing by the defendant. The order preserves the right to take action to enforce the parties' obligations under the settlement terms.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of

maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, \$333,333.33 relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.)

Class Counsel’s Lodestar calculation supports the reasonableness of the requested fee. The Lodestar fee is determined by multiplying the number of hours reasonably expended by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler*, (2000) 22 Cal.4th 1084, 1095. The Lodestar figure may then be adjusted, based on consideration of factors specific to the case, to fix the fee at the fair market value for the legal services provided.” The factors that can be considered include “the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case.” *Melnyk v. Robledo*, (1976) 64 Cal.App.3d 618, 623-624.

Class Counsel’s hourly rates are comparable to those charged by other class action counsel. Bekam Decl. at ¶ 8. The total hours spent on this action were reasonable and in line with comparable cases.

Id. Class Counsel spent 402.8 hours in prosecuting this action, which was divided among the attorneys working on this case according to skill level. The hours expended by each attorney were reasonable and not duplicative and reflect the extensive investigation and analysis that was required to achieve this Settlement.

Multiplying the total hours expended by Class Counsel by their reasonable hourly rates yields a lodestar of \$239,712.50. This amount is under the requested award, and thus a modest multiplier of approximately 1.39 is respectfully requested.

The amount of \$20,482.07 in litigation costs are reasonable and are approved. Settlement administration costs of \$24,000 are reasonable and are approved.

The requested representative payment of \$10,000 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate. The motion is **granted**.
2. The Court will execute the proposed order lodged on May 28, 2026 and set a compliance hearing as set forth in that order. A copy of this ruling shall be attached to the proposed order and is incorporated thereto, inclusive of all its terms.
3. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claim's administrator pending satisfactory compliance as found by the Court. This is an addition to the proposed order.
4. The compliance hearing will be held in Department 16 at 9:00 a.m. The Court may issue a release of the remaining fees through an unreported minute order without hearing upon review and approval of the compliance statement.
5. No appearance is required at the hearing on June 24, 2026.

7. 9:00 AM CASE NUMBER: C24-00509

CASE NAME: JOSE CUELLAR VS. GUANGYU ZHANG

***HEARING ON MOTION IN RE: ORDER GRANTING PLAINTIFF'S SUBSTITUTION OF SUCCESSOR IN INTEREST**

FILED BY: CUELLAR, JOSE

TENTATIVE RULING:

Summary

Plaintiff Jose Cuellar moves this Court for an order pursuant to Code of Civil Procedure Section 337.31, substituting Uriel Cuellar Martinez, Maria Cuellar Martinez and Santiago Cuellar Martinez in their capacity as successor in interest to Jose Cuellar, deceased, under Code of Civil Procedure section 377.31. as plaintiffs in place and stead of decedent.

This motion is **granted** as unopposed. Plaintiff is ordered to prepare and e-file a proposed order that conforms to this ruling, attaching a copy of this ruling no later than five (5) days from the date of the hearing. No appearance is required at the hearing on June 24, 2026. The next case management conference is September 24, 2026 at 8:30 a.m.

8. 9:00 AM CASE NUMBER: C24-03411

CASE NAME: JULIE ROMANOWSKI VS. AVI ELIAHU

*HEARING ON MOTION IN RE: BIFURCATE TRIAL

FILED BY: ELIAHU, AARON

TENTATIVE RULING:

Off calendar. (See Minutes of June 17, 2026 summary judgment hearing.)

9. 9:00 AM CASE NUMBER: C25-03334

CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: VETERINARY EMERGENCY GROUP,

TENTATIVE RULING:

Before the Court is Defendants Veterinary Emergency Group (“VEG”), Melissa, Ogg, D.V.M., and Rosella To, D.V.M.’s (collectively “Defendants”) demurrer. The demurrer relates to Plaintiffs David Chew and Jean Lee’s (collectively “Plaintiffs”) Complaint for (1) negligence (veterinary malpractice); (2) trespass to chattels; (3) breach of bailment; (4) breach of contract; (5) intentional infliction of emotional distress; (6) intentional misrepresentation; and (7) fraudulent concealment.

Defendants demur to all seven causes of action on the ground that they are uncertain pursuant to Code of Civil Procedure section 430.10(f) in that they violate California Rules of the Court rule 2.112 by failing to identify which of the Defendants the claims are against. Defendants also demur to Plaintiffs second through seventh causes of action pursuant to Code of Civil Procedure section 430.10(e), on the ground that they fail to state facts sufficient to constitute causes of action.

Plaintiffs oppose Defendants’ demurrer on the grounds that (1) Plaintiffs’ causes of action are directed at all Defendants; (2) Defendants’ demurrer ignores the plainly alleged facts and the law regarding each cause of action; and (3) Defendants attempt to litigate factual issues prematurely.

For the following reasons, Defendants’ demurrer is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND**.

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

I. Factual Allegations

This case arises out of a dispute over allegedly negligent veterinary medical care.

Plaintiffs David Chew and Jean Lee were the owners of an 11-year-old French Bulldog named Zoë. (Initial Complaint (“Compl.”) at 2:5-6.) On November 13, 2024, Zoë presented to Veterinary Emergency Group in San Ramon, California, for labored breathing. (*Id.* at 3:5-6.) Plaintiffs’ parents were pet sitting Zoë at the time of her presentation to VEG as Plaintiffs were out of the country, however Plaintiffs returned quickly upon learning of Zoë’s condition. (*Id.* at 3:9-11.) Despite initially being out of the country, Plaintiffs were in direct contact with veterinary staff at VEG such that they made all care decisions. (*Ibid.*)

Upon her arrival to VEG, staff allegedly diagnosed Zoë with possible pneumonia, assessed her condition as “critical,” and recommended euthanasia. (Compl. at 3:6-9.) VEG staff allegedly communicated to Plaintiffs that there was fluid in Zoë’s lungs of an unknown nature, though it was “likely a recurrence of her prior cancer.” (*Id.* at 3:12-14.) Plaintiffs allege that this presumption was later proved to be false. (*Ibid.*)

Plaintiffs allege that “[i]n coordination with ZOË’s primary veterinary team, it was determined that ZOË should be transferred from VEG to a specialty hospital as was medically appropriate for her condition.” (Compl. at 3:15-17.) The Complaint does not clarify whether Defendants were involved in the “coordination” with Zoë’s primary veterinary team, but states that “[d]espite this knowledge and discussion, VEG staff, including TO and OGG, strongly discouraged the transfer and refused to facilitate it, stating that ZOË would not survive transfer.” (*Id.* at 3:17-18.)

Zoë spent a week at VEG, during which time Plaintiffs repeatedly expressed concerns about the care she was receiving. (Compl. at 3:19-20.) Among the concerns they expressed was that they believed Zoë’s bloodwork results suggested that doubling her intravenous fluid intake was contraindicated. (*Id.* at 3:20-22.) Plaintiffs state that they are not trained in veterinary medicine, nor do they have any medical knowledge. (*Id.* at 11:5-6.) Plaintiffs allege that their concerns were met with dismissiveness from VEG, Dr. Ogg, and Dr. To. (*Id.* at 3:23-24.)

Plaintiffs further allege that, “[a]fter consistent requests from Plaintiffs, ZOË’s primary veterinary team, and oncologist, the attending veterinarian Dr. TO, began contacting other facilities for transfer.” (Compl. at 3:25-28.) Plaintiffs allege that Defendants “purposely misled” transfer hospitals about Zoë’s status, characterizing her as too unstable for transfer. (*Id.* at 3:27-28, 9:10-12.)

Plaintiffs allege that when Zoë was eventually transferred, the veterinarians at the transfer hospital diagnosed her with fluid overload, water retention, and kidney damage, all of which they allegedly attributed to excessive intravenous fluid administration at VEG. (Compl. at 4:3-6.)

Zoë was ultimately unable to recover from her illness and died. (Compl. at 4:7-8.)

Plaintiffs filed suit in this case on November 12, 2025.

II. Meet and Confer

Prior to filing a demurrer, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading subject to demurrer at least five days before the date a responsive pleading is due. (Code Civ. Proc., § 430.41.) Defendants met their statutory burden when they met telephonically with Plaintiffs’ counsel on February 11, 2026, to discuss the substance of Defendants’ objections as further stated in the instant demurrer. (Declaration of Lauren B. Fazio in Support of Defendants Veterinary Emergency Group, Melissa Ogg, DVM, and Rosella To, DVM’s Demurrer to Plaintiffs’ Complaint (“Fazio Demurrer Dec.”) ¶ 2.)

III. Legal Standard

“A demurrer tests the sufficiency of the complaint by raising questions of law.” (*Schmidt v. Foundation Health* (1995) 35 Cal.App.4th 1702, 1706.) The court “treat[s] the demurrer as admitting

all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer does not test the truth or accuracy of the facts alleged in the complaint; the court assumes the truth of all properly pleaded factual allegations and those which arise by reasonable implication. (*Los Altos Golf & Country Club v. County of Santa Clara* (2008) 165 Cal.App.4th 198, 203; *Shurpin v. Elmhirst* (1983) 148 Cal.App.3d 94, 98.)

A complaint “is sufficient if it alleges ultimate rather than evidentiary facts” (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 (“*Doe*”)), but the plaintiff must set forth the essential facts of his or her case “with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent” of the plaintiff’s claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) “[P]laintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Alcorn v. Anbro Engineering, Inc.* (1970) 2 Cal.3d 493, 496.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) Where a complaint contains substantive factual allegations sufficiently apprising the defendant of the issues it is being asked to meet, a demurrer for uncertainty should be overruled or leave to amend granted. (*Williams v. Beechnut Nutrition Corp.* (1986) 185 Cal.App.3d 135, 139.)

It is an abuse of discretion to deny leave to amend on demurrer if there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d at 318; *Salazar v. Target Corp.* (2022) 83 Cal.App.5th 571, 576-577.) “Where the complaint is defective, ‘[in] the furtherance of justice great liberality should be exercised in permitting a plaintiff to amend his complaint...’” (*Scott v. Indian Wells* (1972) 6 Cal.3d 541, 549 (citations omitted).) This is especially so with respect to a party’s initial complaint. (*City of Torrance v. Southern California Edison Co.* (2021) 61 Cal.App.5th 1071, 1091.)

A demurrer tests the sufficiency of the complaint and is confined to the face of the pleading and matters subject to judicial notice. (Code Civ. Proc., § 430.30(a); *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *SKF Farms v. Superior Court* (1984) 153 Cal.App.3d 902, 905.)

Before turning to the individual causes of action, the Court notes the scope of its review. In opposition, Plaintiffs rely in part on factual assertions concerning Defendants’ advertising and public representations drawn from material outside the Complaint. (Opp. at 10:18-22 & fn. 1.) That material is not alleged in the Complaint and is not a proper subject of consideration on demurrer. The Court has not considered it in ruling on the demurrer, and its analysis is confined to the allegations of the Complaint and matters properly subject to judicial notice.

IV. Analysis

A. Cause of Action One: Negligence (Veterinary Malpractice)

Defendants demur to Plaintiffs’ first cause of action on the grounds that it is uncertain in that it violates California Rules of Court, rule 2.112, which provides that each separately stated cause of

action must specifically state, *inter alia*, the party or parties to whom it is directed (e.g., “against defendant Smith”). (MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF DEFENDANTS DEMURRER TO PLAINTIFFS’ COMPLAINT (“Dem.”) at 7:12-14; Cal. Rules of Court, rule 2.112(4).) Defendants do not challenge the substantive sufficiency of the negligence allegations.

The Court finds merit in this argument.

While the first cause of action adequately alleges the elements of veterinary malpractice in the abstract, the underlying allegations are largely passive and collectively attributed. The Court does not hold that each allegation must be attributed to a specific defendant, nor that collective pleading is categorically impermissible where defendants are alleged to have acted in concert. However, the Complaint as pleaded leaves the Court and Defendants with insufficient notice of which conduct is attributed to which defendant.

The Complaint alleges that “Defendants established a special relationship with Plaintiff” and “breached their duty of care by incorrect and inadequate treatment and care below the minimum standard of care for veterinarians when they caused ZOË’s injuries and failed to adequately diagnose her condition all while misrepresenting her condition.” (Compl. at 4:25-28, 5:1.) The Complaint further alleges that “ZOË was not treated according to minimum standards of veterinary care as set forth above. Defendants then failed to properly address ZOË’s symptoms or properly diagnose the injuries and ailments. Defendants failed to properly monitor and medicate ZOË in a manner indicated by her blood test results.” (*Id.* at 5:3-7.)

While Plaintiffs “incorporate by reference the allegations of all [preceding] paragraphs[,]” the allegations even in the preceding paragraphs are limited in their attribution of specific negligent conduct to named defendants. (Compl. at 4:17-18.) For example, Plaintiffs in their “FACTS APPLICABLE TO ALL DEFENDANTS AND ALL CAUSES OF ACTION” section allege only that “[a]n initial assessment indicated possible pneumonia, and treatment began accordingly.” (Compl. at 3:6-7.) Similarly, they allege, “staff at VEG quickly recommended euthanasia, claiming [sic] the ZOË was in critical condition...” (*Id.* at 3:8-9), and “Plaintiffs were informed that the cause of the fluid in ZOË’s lungs was unknown but was likely a recurrence of her prior cancer—a presumption later confirmed to be incorrect.” (*Id.* at 3:12-14.) These allegations fail to identify which, if any, of the named Defendants is alleged to have acted.

The Complaint does go on to allege that “VEG staff, including TO and OGG, strongly discouraged the transfer and refused to facilitate it, stating that ZOË would not survive transfer” (Compl. at 3:15-18), “inquiries and voiced concerns were met with dismissiveness by VEG, OGG, and TO” (*Id.* at 3:23-24), and “the attending veterinarian Dr. TO, began contacting other facilities for transfer. However, upon information and belief, ZOË’s condition was misrepresented as too unstable for transfer” (*Id.* at 3:26-28), but these isolated instances in which the Complaint does attribute conduct to specific defendants serve to highlight rather than cure the ambiguity in the surrounding allegations. Where Plaintiffs demonstrate the capacity to plead with specificity, the absence of such specificity elsewhere leaves the Court and Defendants to speculate whether the unattributed conduct is alleged against all named

defendants, Doe defendants, or unidentified VEG staff not named as parties. This is precisely the uncertainty that Code of Civil Procedure section 430.10(f) is designed to address.

The Court notes that at least some greater specificity appears available on the face of the allegations. Plaintiffs allege they were in constant contact with the care team and made all decisions, even before returning to the country. (Compl. at 3:6-11.) Plaintiffs further allege that they were on-site, repeatedly expressed concerns directly to Defendants throughout Zoë's weeklong stay, and were present for ongoing communications about transfer and treatment decisions. (*Id.* at 3:15-4:3.) To the extent such information is reasonably ascertainable, the amended complaint should attribute the core alleged acts and omissions to the defendants or defendant responsible for each. Plaintiffs are not required to plead evidentiary detail, but the current level of generality is insufficient to apprise each defendant of the specific conduct alleged against them.

Accordingly, the demurrer to the first cause of action for negligence (veterinary malpractice) is **SUSTAINED WITH LEAVE TO AMEND.**

B. Cause of Action Two: Trespass to Chattels

The elements of trespass to chattels are (1) plaintiff's ownership or right to possess an item of personal property; (2) defendant intentionally damaged or interfered with plaintiff's use of the personal property; (3) plaintiff did not consent; (4) plaintiff was harmed; (5) and defendant's conduct was a substantial factor in causing plaintiff's harm. (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1350-1352; CACI No. 2101, *Trespass to Chattels—Essential Factual Elements* (2026 ed.) *Judicial Council of California*.)

Defendants argue that Plaintiffs' claim for trespass to chattels fails on the grounds that they failed to plead facts establishing either intentional interference or lack of consent. (Dem. at 8:18-19.)

Defendants contend that Plaintiffs' own allegations establish consent, and that the conduct alleged amounts to, at most, negligence. (*Id.* at 8:19-9:1.)

As an initial matter, the Court does not accept Defendants' suggestion that Plaintiffs have failed to allege intent merely because they have not alleged intent to harm. Trespass to chattels lies where an intentional interference with the possession of personal property proximately causes injury. (*Thrifty-Tel, Inc. v. Bezenek* (1996) 46 Cal.App.4th 1559, 1566-1567.) Trespass to chattels is considered "the little brother of conversion." (*Ibid.*) As with conversion, the requisite intent is the intent to do the act that interferes with the property; a wrongful or malicious intent is not required. (*Taylor v. Forte Hotels Int'l* (1991) 235 Cal.App.3d 1119, 1124.) The deficiency in the instant claim lies not in the intent element but in the element of consent.

Plaintiffs' own allegations establish that they sought out emergency veterinary care, delivered Zoë to Defendants, and authorized her examination, treatment, and hospitalization. (Compl. at 3:5-11.) The conduct of which Plaintiffs now complain, including the administration of intravenous fluids, the recommendation of euthanasia, and the advice that Zoë was too unstable to survive transfer to another hospital, occurred within the course of that authorized treatment relationship. (*Id.* at 3:8-4:6.) Treatment rendered pursuant to the owner's authorization does not constitute an intentional

interference with possession, even where the owner contends the treatment was performed negligently. Plaintiffs here explicitly state that they “made all decisions for Zoë’s care.” (*Id.* at 3:11.) The gravamen of these allegations is that Zoë received substandard care, which sounds in professional negligence.

Plaintiffs’ contention that consent was vitiated because it was obtained through misrepresentations does not save the claim as presently pleaded. (Compl. at 6:14-16; Opposition Filed Re: to demurrer to demurrer to plaintiff’s complaint (“Opp.”) at 9:16-18.) Plaintiffs in their Complaint do not identify what misrepresentation induced their consent to any particular intervention, nor do they connect any specific misrepresentation to the consent allegedly procured by it. Even considering the misrepresentation allegations incorporated from Plaintiffs’ sixth cause of action under their intentional misrepresentation cause of action does not change this analysis. There, Plaintiffs allege that Defendants “continued to mislead Plaintiffs and specialty veterinarians as to ZOË’s true condition and her stability for purposes of transfer.” (Compl. at 10:23-26.) This allegation describes deception bearing on Plaintiffs’ decision of whether and when to transfer Zoë to another facility, not deception that induced Plaintiffs’ consent to the intravenous fluid administration or other intervention alleged to have caused Zoë’s injuries.

Plaintiffs’ allegation that they raised concerns about the intravenous fluids being administered to Zoë at the time of the treatment and felt those concerns were dismissed by Defendants likewise does not represent vitiation of consent. (Compl. at 3:20-24.) The Complaint does not describe Plaintiffs withdrawing consent at that time, nor does it describe any misrepresentations by Defendants that caused Plaintiffs to consent to treatments. The allegations instead describe treatment rendered with Plaintiffs’ consent, and a separate claim of deception affecting their transfer decision, neither of which establishes that consent to injury causing conduct was procured by misrepresentation. To the extent that Plaintiffs intend to pursue a vitiated consent theory, the current allegations are conclusory and substantially duplicative of fraud causes of action addressed below.

Berry v. Frazier (2023) 90 Cal.App.5th 1258 does not compel a different result. There, the plaintiff alleged that a veterinarian deliberately misrepresented the nature of a euthanasia procedure in order to obtain the plaintiff’s consent to an intracardiac injection performed on her conscious cat, a procedure the veterinarian knew would cause the cat extreme pain. The deception and the consent it garnered were directly connected – the misrepresentation induced consent to the very procedure that caused the harm. *Berry* thus illustrates the connection between misrepresentations and induced consent that is absent from the present Complaint. Plaintiffs here have not alleged that any specific misrepresentation induced their consent to a specific intervention that caused Zoë’s injuries.

Whether Plaintiffs can cure these defects is uncertain. As presently alleged, the conduct at issue occurred within an authorized course of veterinary treatment, and the authorities permitting recovery for trespass to chattels involving animals have generally involved intentional, wrongful injury inflicted by parties with no right to possess or treat the animal. (*Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1607-1608.) Given that this is Plaintiffs’ initial complaint and the liberal standard governing leave to amend, however, the Court will afford Plaintiffs an opportunity to amend. To state

a viable claim, Plaintiffs must allege conduct falling outside the scope of the authorized treatment and may not simply recast negligence allegations in the language of intentional tort.

The Court further notes that the second cause of action suffers from the same collective pleading deficiency identified with respect to the first cause of action. The claim alleges that “Defendants, each and together, intentionally appropriated dominion and control over ZOË” (Compl. at 6:10-11) without identifying which defendant is alleged to have committed which intentional act. This deficiency is of particular significance in the context of an intentional tort, where the identity of the actor alleged to have formed the requisite intent is central to the claim. Any amended pleading must cure this deficiency consistent with the Court’s discussion above.

Accordingly, the demurrer to the second cause of action for trespass to chattels is **SUSTAINED WITH LEAVE TO AMEND**.

C. Cause of Action Three: Breach of Bailment

A bailment is the delivery of personal property to another for a special purpose, under a contract, express or implied, to carry out the purpose of the delivery. (*Gebert v. Yank* (1985) 172 Cal.App.3d 544, 550.) A bailment for the benefit of both parties is a bailment for hire and imposes on the bailee the duty to use ordinary care with respect to the bailed property. (*Id.* at 551.) Breach of the bailment contract may be asserted by the bailor when there is a failure to return that which was bailed. (*Ibid.*)

Plaintiffs allege they delivered Zoë to Defendants for hospitalization and treatment for labored breathing, that Defendants owed a duty to care for and return her in good health or at least in the same physical health she was in when tendered to Defendants, and that instead Zoë was returned in a “damaged condition as a result of Defendants’ negligence....” (Compl. at 3:5-6, 4:3-8, 7:7-20.)

The principal defect in this claim is that it is duplicative of the breach of contract cause of action. Both claims rest on the identical allegation that Defendants undertook not to harm Zoe and to exercise due care in her treatment. (*Compare* Compl. at 7:8-9 with Compl. at 8:7-9 [alleging identical undertaking not to harm Zoë].) Where a purported bailment claim relies on the same operative facts as a contract claim and merely recharacterizes the same alleged misconduct under a different label, it does not state an independent cause of action. (*Levy v. Only Cremations for Pets, Inc.* (2020) 57 Cal.App.5th 203, 215.) As currently pleaded, the bailment cause of action adds nothing not already captured by the negligence and contract claims and is consequently duplicative.

As Plaintiffs note, California permits the pleading of alternative and even inconsistent theories. (See *Tanforan v. Tanforan* (1916) 173 Cal. 270, 273-274; *Batta v. Hunt* (2024) 106 Cal.App.5th 295, 304.) Accordingly, Plaintiffs contend that they may pursue both negligence and bailment theories at this stage. (Opp. at 12:1-8.) The Court agrees with the principle but finds it inapposite. The alternative pleading doctrine permits a plaintiff who is uncertain which theory the evidence will support to plead distinct legal theories in the alternative. (*Batta, supra*, 106 Cal.App.5th at 304.) It does not relieve a plaintiff of the obligation to allege facts stating each separate cause of action, nor does it convert a single claim into two merely by affixing different labels.

The defect here is not that Plaintiffs have pleaded both a contract theory and a bailment theory; it is that the bailment cause of action, as alleged, sets forth no undertaking, duty, or operative facts distinct from the breach of contract claim. It pleads the same alleged promise not to harm Zoë a second time. A duplicative claim of that kind is not a permissible alternative theory; it is the same claim restated.

This conclusion is reinforced by the nature of the bailment theory itself. A bailment claim ordinarily turns on the bailee's failure to return the bailed property, or its return in damaged condition, from which a breach of the duty of ordinary care may be inferred. But unlike inanimate property, a living animal presented for emergency treatment in critical condition may decline despite competent care. The return of Zoë in worsened condition does not itself establish a breach of the bailee's duty, which is one of ordinary care, not a guarantee of the animal's physical outcome. To the extent the bailment claim rests on Zoë's having been returned in worse health than when she was tendered (Compl. at 7:11-15), it asserts a guarantee of outcome that the law does not imply into a veterinary treatment relationship.

The Court does not adopt the entirety of Defendants' reasoning, however. Defendants contend that the claim fails because Zoë was in fact returned and because Plaintiffs interfered with the bailment by overriding treatment recommendations and insisting on transfer. (Dem. at 10:8-18.) These arguments are less persuasive.

California recognizes that breach of bailment and negligence are distinct theories, and a bailee may bear the burden of showing the absence of negligence once the bailor establishes delivery in good condition and return in damaged condition. (*Gebert, supra*, 172 Cal.App.3d at 554.) Indeed, in *Gebert* the court permitted both a negligence theory and a breach of bailment theory to proceed. (*Ibid.*)

The interference argument also turns on disputed facts not properly resolved on demurrer; Plaintiffs allege that Zoë's injuries had already occurred and that their efforts were directed at mitigating harm and saving her life. (Compl. at 3:15-4:3.)

The Court further declines to rely on *Price v. Brown* (1996) 545 Pa. 216, 680 A.2d 1149, a non-binding decision of the Pennsylvania Supreme Court, and instead rests its analysis on California authority. (*Tindall v. County of Nevada* (2025) 112 Cal.App.5th 78, 88.) "Cases from other jurisdictions, turning as they do, on the constitutions, statutes and precedents of [other] states are of little help in determining our own problems in this field. We regard them as unpersuasive and need not consider them in this opinion." (*County of Santa Barbara v. City of Santa Barbara* (1976) 59 Cal.App.3d 364, 372.)

The deficiency, then, is not that a bailment theory is categorically unavailable against a veterinary provider, but that the claim as pleaded is wholly duplicative of the contract claim and rests on the identical undertaking. The claim also suffers from the collective pleading deficiency identified *ante*, as it attributes the alleged breach to "Defendants" without differentiation. (Compl. at 7:8-21.)

Because this is Plaintiffs' initial complaint and the defects may be curable, the Court grants leave to

amend. Any amended bailment claim must rest on facts distinct from those underlying the contract cause of action and may not simply restate the same undertaking under a different label.

Accordingly, the demurrer to the third cause of action for breach of bailment is **SUSTAINED WITH LEAVE TO AMEND**.

D. Cause of Action Four: Breach of Contract

The elements of a breach of contract cause of action are (1) the existence of a contract, (2) the plaintiff's performance or excuse for nonperformance, (3) the defendant's breach, and (4) damages to plaintiff caused by defendant's failure to perform. (*Tibeca Companies, LLC v. First American Title Ins. Co.* (2015) 239 Cal.App.4th 1088, 1109.)

Defendants first argue that Plaintiffs failed to plead, pursuant to Code of Civil Procedure 430.10(g), whether the contract is written, is oral, or is implied by conduct. (Dem. at 11:16-19.) This argument is unavailing. Plaintiffs explicitly allege that they entered into an oral and implied contract with Defendants. (Compl. at 8:5-9.) The nature of the asserted contract is therefore adequately identified, and the demurrer does not lie on that ground.

The claim is nonetheless deficient. The Complaint alleges that Defendants "agreed, in exchange for monetary compensation, to diagnose, treat, and hospitalize ZOË" and that Defendants "expressly or implicitly promised to do no harm and exercise due diligence in the performance of the services and the care of ZOË." (Compl. at 8:7-11.) Assuming the agreement to diagnose, treat, and hospitalize Zoë identifies a sufficiently definite undertaking, the Complaint does not allege that Defendants failed to perform it. To the contrary, Plaintiffs allege that Defendants did diagnose, treat, and hospitalize Zoë; their complaint is that Defendants did so negligently. (*Id.* at 8:14-15.)

The breach Plaintiffs plead, however framed, remains a breach of the professional duty of care rather than a distinct contractual obligation. In places the Complaint alleges that Defendants rendered treatment negligently (Compl. at 5:8-15, 8:14-15); in others it alleges a "failure to treat or diagnose ZOË's condition," and the giving of "improper treatment at inappropriate doses" (*Id.* at 5:18-21). But failure to diagnose, failure to treat, and negligent treatment are the paradigmatic breaches of the professional standard of care that underlie the malpractice claim.

California permits a hybrid claim in which the negligent performance of a contractual undertaking may give rise to both tort and contract liability. (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 774.) But such a claim requires a contractual obligation distinct from the general duty of care. The only term Plaintiffs identify beyond the agreement to diagnose, treat, and hospitalize Zoë is a promise "to do no harm and exercise due diligence[.]" which is not a bargained-for obligation with ascertainable content but a restatement of the professional duty of care. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811 [terms are reasonably certain only if they provide a basis for determining the existence of a breach and an appropriate remedy].)

Whether Defendants are alleged to have performed the agreed services negligently, or to have failed to perform them at all, the wrong alleged is a departure from the standard of care, and the contract

claim identifies no independent contractual obligation that was breached.

Plaintiffs' allegations elsewhere that Defendants undertook to return Zoë "in good (or at least not worse) physical health" (Compl. at 7:11-13) and that "[s]he was to be returned in the same, if not better, condition following treatment" (*Id.* at 7:14-15), do not supply the missing contractual obligation. So construed, the alleged term is a promise that the patient would not deteriorate. As discussed in connection with the breach of bailment cause of action *ante*, the law does not imply into a veterinary treatment relationship a promise that a critically ill animal will not decline; such a term is a guarantee of outcome, not a bargained-for undertaking distinct from the professional duty of care. The Court accordingly rejects Defendants' broader suggestion that no contract claim may ever arise from veterinary services while concluding that the term Plaintiffs have alleged does not state one.

The claim also suffers acutely from the collective pleading deficiency identified *ante*. A breach of contract claim requires identification of the contracting parties and the breaching party. The Complaint alleges only that "Plaintiffs and Defendants entered into a valid contract" (Compl. at 8:5), without specifying which defendant agreed to which terms, whether the individual veterinarians contracted in their individual capacities or solely as agents of the entity, which defendant or defendants breached the contract, or how each is alleged to have done so. Where one defendant is a corporate entity, and two are individual professionals, the failure to differentiate is particularly significant to contract analysis.

Because this is Plaintiffs' initial complaint and the defects may be curable, the Court grants leave to amend. Any amended contract claim must identify the specific terms of the agreement, identify which defendant or defendants entered into and breached the agreement, and allege a contractual obligation, distinct from the professional duty of care underlying the negligence claim, that Defendants failed to perform.

Accordingly, the demurrer to the fourth cause of action for breach of contract is **SUSTAINED WITH LEAVE TO AMEND**.

E. Cause of Action Five: Intentional Infliction of Emotional Distress ("IIED")

A claim for IIED requires (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 903.) For conduct to be outrageous it must be so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Ibid.*) IIED liability "does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities." (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1051.) Although whether conduct is outrageous is usually a question of fact, many cases have sustained demurrers to IIED claims, concluding that the facts alleged do not amount to outrageous conduct as a matter of law. (*Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235.)

Plaintiffs' IIED claim fails because the conduct alleged is not outrageous as a matter of law, and

because, under controlling authority, the conduct was directed at Zoë, the dog, not the Plaintiffs.

The conduct of which Plaintiffs complain consists of disputed treatment decisions and communications – the recommendation of euthanasia, the administration of intravenous fluids, the active discouragement of transfer, the dismissal of Plaintiffs’ concerns, and the representation that Zoë was too unstable to survive transfer. (Compl. at 9:5-21.) Even accepting these allegations as true as required on demurrer, they describe contested medical judgment and, at most, professional negligence. Medical judgment alleged to be mistaken, careless, or poorly communicated does not constitute conduct exceeding all bounds tolerated in a civilized community. (*Christensen, supra*, 54 Cal.3d at 903.) There are no allegations of threats, abuse, or cruelty directed at Plaintiffs for the purpose of inflicting emotional harm.

McMahon v. Craig (2009) 176 Cal.App.4th 1502 controls here. There, the plaintiff alleged that a veterinarian mishandled postoperative care, concealed the resulting complications, and was aware of the plaintiff’s close emotional attachment to her dog based on communications with both the plaintiff and the plaintiff’s friend on the subject. (*Id.* at 1507-1508.) The Court of Appeal affirmed dismissal of the IIED claim, holding that the alleged conduct was directed at the animal rather than the owner, that even the alleged concealment of malpractice was not outrageous as a matter of law, and that “[t]he contract between plaintiff and defendants to treat plaintiff’s dog did not by itself demonstrate defendants undertook a duty to protect plaintiff’s mental and emotional tranquility.” (*Id.* at 1503, 1509-1514.) The court reasoned that veterinary services are rendered to the pet and accordingly a veterinarian’s malpractice does not directly harm the owner in a manner creating liability for emotional distress. (*Id.* at 1510.)

Regardless of how foreseeable a pet owner’s emotional distress may be in losing a beloved animal, we discern no basis in policy or reason to impose a duty on a veterinarian to avoid causing emotional distress to the owner of the animal being treated, while not imposing such a duty on a doctor to the parents of a child receiving treatment.

(*McMahon, supra*, 176 Cal.App.4th at 1514.)

McMahon’s reasoning applies directly to the instant case. The treatment decisions Plaintiffs challenge, even if negligent and even if poorly communicated, were directed at Zoë’s care. The Complaint alleges no conduct undertaken for the purpose of causing Plaintiffs’ emotional distress.

Plaintiffs’ reliance on *Berry, supra*, 90 Cal.App.5th 1258, is misplaced. As noted in the trespass to chattels section of this ruling *ante*, in *Berry* the plaintiff alleged that a veterinarian deliberately misrepresented the nature of a euthanasia procedure in order to obtain the plaintiff’s consent to an intracardiac injection performed on her conscious cat, a procedure the veterinarian knew would cause the cat extreme pain. There, the court found that the veterinarian’s conduct could support an IIED claim because the conduct was designed to procure her consent to a specific procedure known to inflict suffering. (*Id.* at 1275.) Two features were essential to that holding, and both are absent here.

First the misrepresentation in *Berry* was made to procure the owner's consent to a specific procedure known to inflict extreme suffering – the deception and the painful procedure were inseparable. Here, although Plaintiffs allege that misrepresentations were made to them concerning Zoë's condition and her stability for transfer (Compl. at 10:18-25), those representations were not made to induce Plaintiffs' consent to a procedure known to cause extreme pain.

Second, the conduct in *Berry* was directed at the owner. By contrast, the conduct Plaintiffs allege consists of treatment decisions directed at Zoë's care, which under *McMahon* is legally insufficient to support the claim regardless of the resulting emotional harm to the owner. *Berry* thus illustrates the kind of intentional, owner-directed conduct designed to inflict suffering that is absent from this complaint.

Plaintiffs' reliance on *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, fares no better. *Plotnik* involved a neighbor who intentionally struck and injured the plaintiff's dog. The recovery there rested on an intentional, wrongful physical assault by a third party with no right to handle the dog, conduct categorically different from veterinary treatment rendered with the owner's authorization.

Because this is Plaintiffs' initial complaint, the Court grants leave to amend. The Court notes, however, that any amended claim will need to allege conduct materially distinct from the authorized veterinary treatment addressed in *McMahon*, including conduct that was directed at Plaintiffs and undertaken with the intent to cause, or in reckless disregard of causing, severe emotional distress. Whether Plaintiffs can allege such facts consistent with their existing allegations is uncertain.

Accordingly, the demurrer to the fifth cause of action for intentional infliction of emotional distress is **SUSTAINED WITH LEAVE TO AMEND.**

F. Cause of Action Six: Intentional Misrepresentation

The elements of intentional misrepresentation are: (1) misrepresentation; (2) knowledge of falsity (or scienter); (3) intent to induce reliance; (4) actual and justifiable reliance; and (5) resulting damage. (*Berry, supra*, 90 Cal.App.5th at 1268.) Like fraud, each element in a claim for intentional misrepresentation must be factually and specifically pled; general and conclusory allegations are insufficient. (*Cadlo v. Owens-Illinois, Inc.* (2004) 125 Cal.App.4th 513, 519; *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.)

The policy of liberal construction of pleadings is not generally invoked to sustain a misrepresentation pleading defective in any material respect. [citation] Thus, the mere assertion of "reliance" is insufficient. The plaintiff must allege the specifics of his or her reliance on the misrepresentation to show a bona fide claim of actual reliance. [citation]

(*Cadlo, supra*, 125 Cal.App.4th at 519.)

The specificity requirement means a plaintiff must allege facts showing how, when, where, to whom, and by what means the representations were tendered. (*Lazar v. Superior Court* (1996) 12 Cal.4th

631, 645; *Stansfield v. Starkey* (1990) 220 Cal.App.3d 59, 73.) When asserting such a claim against a corporate defendant the burden is greater; the plaintiff must also allege “the names of the persons who made the representations, their authority to speak on behalf of the corporation, to whom they spoke, what they said or wrote, and when the representation was made.” (*West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793.)

Plaintiffs’ claim does not satisfy this standard. The Complaint alleges that “Defendants made numerous misrepresentations to Plaintiffs including the representations to other veterinarians regarding ZOË’s status, her ability to be transferred, and her need to be euthanized,” and that Defendants “continued to mislead Plaintiffs and specialty veterinarians as to ZOË’s true condition and her stability for purposes of transfer.” (Compl. at 10:20-26.) These allegations do not identify which defendant made any particular representation, when or by what means it was made, or, as to VEG, the person who made it and that person’s authority to speak. The collective attribution of the alleged misrepresentations to “Defendants” is particularly problematic in the fraud context, where the heightened pleading standard exists precisely to require individualized allegations.

Plaintiffs invoke the principle that less specificity is required when the facts underlying the fraud lie more within the defendant’s knowledge than the plaintiff’s. (*Cansino v. Bank of America* (2014) 224 Cal.App.4th 1462, 1469; *Tenet Healthsystem Desert, Inc. v. Blue Cross of California* (2016) 245 Cal.App.4th 821, 838.) That principle has some application here, as certain of the alleged misrepresentations, those made to other veterinary facilities, occurred outside of Plaintiffs’ presence. But the relaxation of specificity goes to the level of evidentiary detail, not to the threshold obligation to identify which defendant made a representation, to whom, and in substance what was said. Moreover, Plaintiffs allege that they were present at the veterinary hospital throughout Zoë’s stay and in direct communication with her care team, so the representations made to them are not beyond their knowledge. The above principle does not excuse the deficiencies here.

A further difficulty concerns the audience of the alleged misrepresentations. An intentional misrepresentation claim requires the plaintiff’s own actual and justifiable reliance. (*Berry, supra*, 90 Cal.App.5th at 1268; *Cadlo, supra*, 125 Cal.App.4th at 519.) Several of the misrepresentations Plaintiffs identify, including “VEG’s continued use of scare tactics and cost-related discouragement,” were by Plaintiffs’ own allegations communications directed to the potential transfer hospitals, rather than to Plaintiffs. (Compl. at 3:25-4:2.) Representations made to third parties cannot support the claim absent allegations that Plaintiffs themselves relied on them. And even if Plaintiffs were somehow contemporaneously aware of what Defendants were allegedly communicating to the potential transfer hospitals, their own allegations tend to establish that they did not rely on it: Plaintiffs allege they continued to seek a willing transfer hospital and ultimately secured one “despite” this discouragement. (*Ibid.*) Conduct undertaken in defiance of a representation is not reliance upon it.

The Court does not, however, accept Defendants’ contention that the claim necessarily fails because it merely restates the malpractice allegations. (Dem. at 17:6-11.) Plaintiffs allege a reliance theory distinct from their negligence claim: that the misrepresentations caused them to delay transferring

Zoë to another facility, and that they would have acted differently and sought specialty care sooner had they known Zoë's true condition. (Compl. at 11:4-14.) The claim is nonetheless deficient in a respect beyond specificity. Although the Complaint alleges that Defendants knew or recklessly disregarded the falsity of their representations (*Id.* at 10:27-11:3), it does not allege that Defendants made representations with the intent to induce Plaintiffs' reliance, a distinct and essential element of the cause of action. While intent may be alleged generally and is ultimately a question of fact, the Complaint must still allege the element, and as pleaded it does not. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1061.)

Because this is Plaintiffs' initial complaint and the deficiencies may be curable, the Court grants leave to amend. Any amended claim must allege, as to each Defendant, the specific misrepresentations made, the person who made it and the person's authority to speak for the entity, when and by what means it was made, that the representation was made with intent to induce Plaintiffs' reliance, and facts establishing Plaintiffs' own justifiable reliance.

Accordingly, the demurrer to the sixth cause of action for intentional misrepresentation is **SUSTAINED WITH LEAVE TO AMEND.**

G. Cause of Action Seven: Fraudulent Concealment

The elements of fraudulent concealment are (1) concealment or suppression of an important, material fact; (2) the defendant had a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1246; *Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.) Fraud, including fraud by concealment must be pleaded with specificity; general and conclusory allegations do not suffice, and the policy of liberal construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect. (*Small, supra*, 30 Cal.4th at 184; *Lazar, supra*, 12 Cal.4th at 645; *West, supra*, 214 Cal.App.4th at 793.) Courts recognize that the requirement of specificity is relaxed somewhat as applied to concealment, because it is difficult to plead with exactitude the time, place, and manner of something that was not said. (*Alfaro v. Community Housing Improvement System & Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384.) Nonetheless, the claim must allege the substance of what was concealed, the defendant or defendants who concealed it, and the facts establishing the remaining elements. (*Ibid.*)

Here, Plaintiffs have adequately alleged a duty to disclose. The Complaint alleges that Defendants entered into a veterinarian-client-patient relationship and a bailment relationship with Plaintiffs. (Compl. at 12:8-12.) A veterinary care relationship of that kind is sufficient at the pleading stage to support a duty to disclose material facts concerning the animal patient's condition.

Defendants' contention that the claim is internally contradictory does not provide a basis to sustain. (Dem. at 18:16-23.) Defendants argue that the Complaint concedes disclosure, that Zoë was too

unstable to transfer, while simultaneously alleging concealment. (*Ibid.*) But disclosing an animal's initial critical status is not logically inconsistent with concealing a subsequent worsening of her condition. The two allegations may coexist.

The claim nonetheless fails for two reasons. First, it suffers from the same deficiencies in specificity and individualized attribution identified with respect to the sixth cause of action. The Complaint alleges that:

Defendants intentionally failed to disclose facts to Plaintiffs and specialty veterinarians by misrepresentations and omissions... Defendants failed to disclose to Plaintiffs ZOË's true condition while providing treatment, namely, her worsening condition. It was not until multiple days of additional unnecessary care at Defendants' facility that they informed Plaintiffs that ZOË needed additional specialty care.

(Compl. at 11:27-12:5.)

The Complaint does not identify which defendant possessed and concealed the undisclosed information, when the duty to disclose arose, or, as to VEG, the individual responsible. While the specificity required of a concealment claim is relaxed, that relaxation does not excuse the collective attribution of the concealment to "Defendants" without individuation.

Second, the Complaint does not adequately allege intent to defraud. The third element of a fraudulent concealment claim requires that the defendant intentionally concealed the fact with the intent to defraud the plaintiff. (*Aton Center, Inc., supra*, 93 Cal.App.5th at 1246; *Boschma, supra*, 198 Cal.App.4th at 248.) The Complaint alleges that Defendants "intentionally failed to disclose to Plaintiffs" Zoë's "worsening condition." (Compl. at 11:27-12:2.) But an allegation that nondisclosure was intentional addresses only the deliberate character of the omission; it does not allege that the concealment was undertaken with the intent to defraud Plaintiffs or induce them to act or refrain from acting. While intent to defraud may in appropriate circumstances be inferred from the deliberate withholding of a material fact a defendant was bound to disclose, and while intent is ultimately a question of fact (*Beckwith, supra*, 205 Cal.App.4th at 1061), the conclusory allegation of intentional nondisclosure here does not supply the requisite intent to defraud.

Because this is Plaintiffs' initial complaint and the deficiencies may be curable, the Court grants leave to amend. Any amended claim must allege, as to each defendant, the specific material fact concealed, the defendant who concealed it and (as to the entity, VEG) the individual responsible, the basis and timing of the duty to disclose, facts showing the concealment was undertaken with intent to defraud, and facts establishing Plaintiffs' resulting harm.

Accordingly, the demurrer to the seventh cause of action for fraudulent concealment is **SUSTAINED WITH LEAVE TO AMEND.**

V. Conclusion

For the foregoing reasons, Defendants' demurrer is **SUSTAINED IN ITS ENTIRETY WITH LEAVE TO AMEND.**

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

10. 9:00 AM CASE NUMBER: C25-03334
CASE NAME: DAVID CHEW VS. VETERINARY EMERGENCY GROUP,
***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S COMPLAINT**
FILED BY: VETERINARY EMERGENCY GROUP,
TENTATIVE RULING:

Before the Court is Defendants Veterinary Emergency Group ("VEG"), Melissa, Ogg, D.V.M., and Rosella To, D.V.M.'s (collectively "Defendants") motion to strike. The motion to strike relates to Plaintiffs David Chew and Jean Lee's (collectively "Plaintiffs") Complaint for (1) negligence (veterinary malpractice); (2) trespass to chattels; (3) breach of bailment; (4) breach of contract; (5) intentional infliction of emotional distress; (6) intentional misrepresentation; and (7) fraudulent concealment.

Defendants move to strike Plaintiffs' claims for (1) punitive/exemplary damages; and (2) emotional distress/general pain-and-suffering damages. They do so on the grounds that (1) Plaintiffs' claims for general/emotional distress are not recoverable by law; and (2) Plaintiffs' punitive damage claim under Civil Code section 3340 is defective.

Plaintiff opposes Defendants' motion to strike, arguing that general/emotional distress damages are supported by law, punitive damages under Civil Code section 3340 are properly pled and supported by law, and determining whether the facts support a claim of gross negligence is a premature factual determination.

Defendant's motion to strike is **GRANTED IN ITS ENTIRETY WITH LEAVE TO AMEND.**

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

I. Factual Allegations

This case arises out of a dispute over allegedly negligent veterinary medical care.

Plaintiffs David Chew and Jean Lee were the owners of an 11-year-old French Bulldog named Zoë. (Initial Complaint ("Compl.") at 2:5-6.) On November 13, 2024, Zoë presented to Veterinary Emergency Group in San Ramon, California, for labored breathing. (*Id.* at 3:5-6.) Plaintiffs' parents were pet sitting Zoë at the time of her presentation to VEG as Plaintiffs were out of the country, however Plaintiffs returned quickly upon learning of Zoë's condition. (*Id.* at 3:9-11.) Despite initially being out of the country, Plaintiffs were in direct contact with veterinary staff at VEG such that they made all care decisions. (*Ibid.*)

Upon her arrival to VEG, staff allegedly diagnosed Zoë with possible pneumonia, assessed her condition as "critical," and recommended euthanasia. (Compl. at 3:6-9.) VEG staff allegedly communicated to Plaintiffs that there was fluid in Zoë's lungs of an unknown nature, though it was "likely a recurrence of her prior cancer." (*Id.* at 3:12-14.) Plaintiffs allege that this presumption was

later proved to be false. (*Ibid.*)

Plaintiffs allege that “[i]n coordination with ZOË’s primary veterinary team, it was determined that ZOË should be transferred from VEG to a specialty hospital as was medically appropriate for her condition.” (Compl. at 3:15-17.) The Complaint does not clarify whether Defendants were involved in the “coordination” with Zoë’s primary veterinary team, but states that “[d]espite this knowledge and discussion, VEG staff, including TO and OGG, strongly discouraged the transfer and refused to facilitate it, stating that ZOË would not survive transfer.” (*Id.* at 3:17-18.)

Zoë spent a week at VEG, during which time Plaintiffs repeatedly expressed concerns about the care she was receiving. (Compl. at 3:19-20.) Among the concerns they expressed was that they believed Zoë’s bloodwork results suggested that doubling her intravenous fluid intake was contraindicated. (*Id.* at 3:20-22.) Plaintiffs state that they are not trained in veterinary medicine, nor do they have any medical knowledge. (*Id.* at 11:5-6.) Plaintiffs allege that their concerns were met with dismissiveness from VEG, Dr. Ogg, and Dr. To. (*Id.* at 3:23-24.)

Plaintiffs further allege that, “[a]fter consistent requests from Plaintiffs, ZOË’s primary veterinary team, and oncologist, the attending veterinarian Dr. TO, began contacting other facilities for transfer.” (Compl. at 3:25-28.) Plaintiffs allege that Defendants “purposely misled” transfer hospitals about Zoë’s status, characterizing her as too unstable for transfer. (*Id.* at 3:27-28, 9:10-12.)

Plaintiffs allege that when Zoë was eventually transferred, the veterinarians at the transfer hospital diagnosed her with fluid overload, water retention, and kidney damage, all of which they allegedly attributed to excessive intravenous fluid administration at VEG. (Compl. at 4:3-6.)

Zoë was ultimately unable to recover from her illness and died. (Compl. at 4:7-8.)

Plaintiffs filed suit in this case on November 12, 2025.

II. Meet and Confer

Prior to filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading in an attempt to informally resolve the objections raised therein. (Code Civ. Proc., § 435.5(a).) Defendants met their statutory burden when they met telephonically with Plaintiffs’ counsel on February 11, 2026, to discuss the substance of Defendants’ objections as further stated in the instant motion. (Declaration of Lauren B. Fazio in Support of Defendants Veterinary Emergency Group, Melissa Ogg, DVM, and Rosella To, DVM’s Motion to Strike Plaintiffs’ Complaint (“Fazio MTS Dec.”) ¶ 2.)

III. Legal Standard

“Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof...” (Code Civ. Proc., § 435(b)(1).) The court may, upon a motion made pursuant to § 435 “(a) Strike out any irrelevant, false, or improper matter inserted in any pleading[,] [or] (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) Irrelevant matter includes a demand for judgment requesting relief not supported by the allegations of the complaint.”

(Code Civ. Proc., § 431.10(b)(3).) A motion to strike may be used to attack a prayer for damages where the recovery sought is not legally available on the facts as pleaded.

“In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Pleadings are to be liberally construed with a view to substantial justice between the parties. (Code Civ. Proc., § 452.)

“An amendment should be allowed where the defect, though one of *substance*, may possibly be cured by supplying omitted allegations, and the plaintiff has not had a fair opportunity to do so...” (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 168.) Where the defect raised by a motion to strike is reasonably capable of cure, leave to amend should be granted. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1146.) “It is generally an abuse of discretion to deny leave to amend, because the drastic step of denial of the opportunity to correct the curable defect effectively terminates the pleader’s action.” (*Id.* at 11:46-1147.)

A motion to strike reaches only matters appearing on the face of the pleading or from matters of which the Court may take judicial notice. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683; Code Civ. Proc., § 437(a).)

In opposing this motion, Plaintiffs rely in part on factual assertions concerning Defendants’ advertising and public representations drawn from material outside the Complaint. (Opposition filed re: Motion to Strike Plaintiffs’ Complaint (“Opp.”) at 6:15-21 & fn. 1.) That material is not alleged in the Complaint nor is it subject to judicial notice. The Court has confined its review to the allegations of the Complaint and matters properly subject to judicial notice. Accordingly, the factual assertions concerning Defendants’ advertising and public representations have not been considered in ruling on this motion.

IV. Analysis

A. General and Emotional Distress Damages

Defendants move to strike Plaintiffs’ request for emotional distress and other general damages on the ground that such damages are not recoverable for negligent injury to an animal, which California law treats as personal property.

Under California law, a dog is personal property. (Civ. Code, § 655; *Scharer v. San Luis Rey Equine Hospital, Inc.* (2012) 204 Cal.App.4th 421, 427.) The measure of damages for negligent injury to personal property does not ordinarily include compensation for the owner’s emotional distress. The general principle was stated by the Supreme Court in *Erlich v. Menezes* (1999) 21 Cal.4th 543. There, the court held that emotional distress damages are not recoverable for negligent breach of contract that causes only economic injury or property damage, absent the breach of an independent duty arising from tort principles. (*Id.* at 551-554.) Even where an independent duty is breached, recovery for emotional distress is available only where the defendant has assumed a duty in which the plaintiff’s emotional condition is an object of the undertaking, or where the breach threatened

personal physical injury rather than mere damage to property or financial interests. (*Id.* at 554-556.)

McMahon v. Craig (2009) 176 Cal.App.4th applies these principles in the veterinary context. There, the court held that a veterinarian owes no duty to safeguard the emotional tranquility of a pet's owner, that the veterinarian's services are directed to the animal, and that any resulting emotional harm to the owner is indirect. (*Id.* at 1509-1514.) The court reached this conclusion notwithstanding allegations in that case that both the owner and a friend of the owner, who wrote a letter to the veterinarian on the owner's behalf, had communicated the owner's deep devotion to the dog, such that the veterinarian was aware of the owner's significant attachment. (*Id.* at 1507.) Awareness of the owner's bond with the animal did not give rise to a duty to protect the owner's emotional tranquility, nor did it convert veterinary services rendered to the animal into an undertaking directed at the owner's emotional wellbeing. (*Id.* at 1513-1514.) Accordingly, a pet owner cannot recover damages for emotional distress or loss of companionship based on a veterinarian's negligent treatment of the animal, even where the treatment results in the animal's death. (*Id.* at 1506, 1509-1515.)

Plaintiffs do not dispute that animals are personal property under California law, but contend that emotional distress damages are available where the conduct goes beyond negligence into intentional tort. (Opp. at 5:4-8.) That is a correct statement of the limited exception, but it does not aid Plaintiffs on the present pleading. The authorities recognizing recovery for emotional distress in connection with companion animals cited by Plaintiffs each rested on intentional or malicious conduct, or an undertaking in which the owner's emotional wellbeing was itself the object. (*Ibid*; *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590; *Levy v. Only Cremations for Pets, Inc.* (2020) 57 Cal.App.5th 203; *Berry v. Frazier* (2023) 90 Cal.App.5th 1258.)

In *Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, recovery rested on an intentional, wrongful physical assault on the animal by a third party. In *Levy v. Only Cremations for Pets, Inc.* (2020) 57 Cal.App.5th 203, the defendant's undertaking, the cremation and return of a pet's cremains, was one in which the owner's emotional wellbeing was the very service being provided. To the extent that Plaintiffs rely in their opposition on VEG's advertising materials to characterize the veterinary engagement here as a comparable undertaking directed at their emotional wellbeing, that material lies outside the four corners of the Complaint and has not been considered, as noted *ante*. (Opp. at 6:15-21 & fn. 1.) And in *Berry v. Frazier* (2023) 90 Cal.App.5th 1258, the claim rested on a veterinarian's intentional misrepresentations made to the owner to obtain consent to a procedure known by the veterinarian to cause extreme suffering. These authorities are consistent with *Erlich* and *McMahon*: emotional distress damages are unavailable for negligent veterinary care, and become available only where an intentional tort is adequately pleaded or where emotional tranquility was an object of the undertaking.

As pleaded, the Complaint does not bring this case within any of those exceptions. The gravamen of the Complaint is negligent veterinary treatment: disputed decisions regarding diagnosis, fluid administration, monitoring, the recommendation of euthanasia, and resistance to transfer. As set forth in the concurrently issued ruling on Defendants' demurrer, each of Plaintiffs' intentional tort causes of action, trespass to chattels, intentional infliction of emotional distress, intentional

misrepresentation, and fraudulent concealment, has been sustained on demurrer. There is accordingly no operative intentional tort to support a request for emotional distress damages. Nor does the Complaint allege, within its four corners, facts establishing that the veterinary engagement was one in which Plaintiffs' emotional tranquility was an object of the undertaking, as distinct from the medical care of the animal.

Plaintiffs' reliance on the evolving legal treatment of companion animals is unavailing. Neither Assembly Bill 2274 and its provision concerning the care of a pet in a custody proceeding, nor the out-of-state trial court decision on which Plaintiffs rely for the proposition that a dog may be regarded as a member of the family (*see DeBlase v. Hill* (Sup.Ct.) 2025 NY Slip Op 25156 [87 Misc.3d 1139, 239 N.Y.S.3d 770]; *Opp.* at 12-19.), alters this result. The settled California rule governs here: for the purposes of tort recovery, an injured animal is personal property, and the owner may not recover emotional distress damages for its negligent injury. (*Scharer, supra*, 204 Cal.App.4th at 427-428; *Erlich, supra*, 21 Cal.4th at 554-556.)

In striking these allegations, the Court does not disturb Plaintiffs' request for economic and property-based damages. The measure of damages for negligent injury to an animal as personal property may include such items as the reasonable and necessary costs of veterinary care and the animal's value, and nothing in this ruling limits Plaintiffs' ability to seek those damages. What is stricken is the request for noneconomic damages, that is, damages for Plaintiffs' own emotional distress and loss of companionship, which are not recoverable on the present pleading for the reasons stated above.

Because the availability of emotional distress and general damages depends on the adequacy of an intentional tort claim that is not presently operative, the challenged damages allegations are properly stricken. As with the demurrer, however, and because this is Plaintiffs' Initial Complaint, leave to amend is granted. The availability of emotional distress damages will depend on whether Plaintiffs are able to replead a viable intentional tort, or otherwise to allege facts bringing the claim within a recognized exception to the rule barring such damages for negligent injury to property.

Accordingly, Defendants' motion to strike Plaintiffs' prayer for emotional distress and general damages is **GRANTED WITH LEAVE TO AMEND**.

B. Punitive/Exemplary Damages Under Civil Code Section 3340

Civil Code section 3340 provides that exemplary damages may be given "[f]or wrongful injuries to animals being subjects of property, committed willfully or by gross negligence, in disregard of humanity." (Civ. Code, § 3340.) Defendants move to strike Plaintiffs' prayer for exemplary damages under Civil Code section 3340 on two grounds: (1) that the prayer is not tethered to a viable cause of action, and (2) that the conduct alleged does not meet the statutory standard. (Memorandum of Points and Authorities in support of Defendants' Motion to Strike Plaintiffs' Complaint ("MTS") at 7:5-12.)

i. The Section 3340 Prayer Is Not Tethered to a Viable Cause of Action

Plaintiffs' request for exemplary damages is subject to being stricken on two independent grounds.

First, the request is structurally defective. There is no independent cause of action for a violation of Civil Code section 3340; a request for exemplary damages under section 3340 must be asserted in connection with a substantive cause of action that supports it. (*Berry, supra*, 90 Cal.App.5th at 1276.) Here, rather than attach the prayer to a particular cause or causes of action, the Complaint sets out a freestanding section titled “ADDITIONAL FACTS IN SUPPORT OF EXEMPLARY DAMAGES PURSUANT TO CIVIL CODE SECTION 3340,” followed by a prayer for punitive damages, without tying the request to any of the seven causes of action. (Compl. at 12:26-13:19.) A request for exemplary damages pleaded in this freestanding manner, untethered to any specific cause of action is improper and would be subject to being stricken on that basis even had the demurrer been overruled. Any amended pleading must connect the request to the specific cause or causes of action alleged to support it.

Second, and independently, the demurrer has been sustained with leave to amend as to all seven causes of action, as set forth in the Court’s concurrently issued demurrer ruling. Accordingly, there is no operative cause of action to which the exemplary damages request could attach in any event. While a Civil Code section 3340 request premised on gross negligence may, in an appropriate case, be tied to a negligence claim, and a request premised on intentional wrongdoing to a viable intentional tort, no such claim is presently operative.

In any amended complaint, Plaintiffs must both replead a viable supporting cause of action and affirmatively connect the Civil Code Section 3340 request to that action.

i. The Conduct Alleged and the Section 3340 Standard

Although the tethering defect is itself a sufficient basis to strike the request, the Court engages with Defendants’ substantive challenge as well, because it bears on any amended pleading.

Civil Code section 3340 authorizes exemplary damages for wrongful injuries to animals “committed willfully or by gross negligence, in disregard of humanity.” (Civ. Code, § 3340.) Gross negligence means the want of even scant care or an extreme departure from the ordinary standard of conduct. (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185-1186; *City of Santa Barbara v. Superior Court* (2007) 41 Cal.4th 747, 754.) Whether conduct amounts to gross negligence is ordinarily a question of fact. (*City of Santa Barbara, supra*, 41 Cal.4th at 767.) The question presented is whether the facts pleaded are sufficient to invoke the standard.

The principle that a request for exemplary damages must be supported by pleaded facts rather than conclusory characterization applies here, just as it does for exemplary damages under Civil Code section 3294. (*See Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166 [addressing exemplary damages under Civ. Code § 3294; the mere allegation of wrongful conduct is insufficient, and “facts must be alleged in the pleading to support such a claim”].) That principle is properly enforced by a motion to strike. (*Id.* at 168.) A motion to strike tests whether facts actually pleaded support the relief sought; it is not satisfied by conclusory characterizations, “ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (*Clauson, supra*, 67 Cal.App.4th at 1255.) Labeling conduct “grossly negligent,” willful,” or in disregard of humanity” does not supply them.

Here, the Complaint alleges that it is “grossly negligent (if not willful conduct)” to promise overnight

care and collect payment without providing it, and that Defendants' acts were "so far below standard industry practice as to be unconscionable." (Compl. at 13:6-12.) Stripped of these characterizations, the facts pleaded – the recommendation of euthanasia, the advice against transfer, the administration of intravenous fluids, the dismissal of Plaintiffs' concerns, and the communications regarding Zoë's condition – describe disputed clinical judgment. As pleaded they do not set forth ultimate facts establishing an extreme departure from the standard of care undertaken in disregard of humanity.

Plaintiffs' reference to an exemplary damages award their counsel represents to have obtained in another matter (Opp. at 8:8-12) is unavailing as it is not authority, has no precedential value, and does not bear on the sufficiency of the allegations in this Complaint.

The Court does not hold that exemplary damages under Civil Code section 3340 are categorically unavailable on the facts of this case, nor does it resolve whether the conduct alleged was grossly negligent, which is ordinarily a question of fact. (*City of Santa Barbara, supra*, 41 Cal.4th at 767.) It holds only that the allegations as presently pleaded are conclusory and do not set forth ultimate facts sufficient to support the statutory standard of wrongful injuries to animals "committed willfully or by gross negligence, in disregard of humanity." (Civ. Code, § 3340.)

Because this is Plaintiffs' Initial Complaint and the deficiencies may be curable, leave to amend is granted on both the tethering and sufficiency grounds. Accordingly, Defendants' motion to strike Plaintiffs' prayer for exemplary damages under Civil Code section 3340 is **GRANTED WITH LEAVE TO AMEND**.

V. Conclusion

For the foregoing reasons, Defendants' motion to strike Plaintiffs' prayers for punitive/exemplary damages and emotional distress/general pain-and-suffering damages is **GRANTED IN ITS ENTIRETY WITH LEAVE TO AMEND**.

Plaintiffs have 15 days from the date of entry of this order to file and serve any amended pleading.

11. 9:00 AM CASE NUMBER: C26-01406
CASE NAME: RANDY MONTESANO VS. DAWN GUZMAN

*HEARING ON MOTION IN RE: LEAVE TO PROCEED ANONYMOUSLY; REQUEST FOR INTERIM
PROTECTIVE RELIEF PENDING HEARING
FILED BY: GUZMAN, DAWN RENEE

TENTATIVE RULING:

Summary

The Court has reviewed Defendant Dawn R. Guzman's Motion to Proceed Anonymously. For the reasons set forth herein, the Motion is **denied** as moot.

Background

This matter comes before the Court on Defendant's third attempt to seek identical relief. On May 20, 2026, Defendant submitted an *ex parte* application requesting permission to proceed under

pseudonym and to seal the record. This application sought to conceal Defendant's identity in a wrongful-death action brought by Plaintiffs Randy Montesano, et al., arising from the death of a 106-year-old woman, Lena Montesano, allegedly occurring while she was under Defendant's care.

The Court previously denied Defendant's identical request on May 12, 2026, following full briefing and opposition from Plaintiffs. That Order found no good cause existed for proceeding anonymously, noting that California's "Safe at Home" program protects the residential address and location of protected parties, not their identities in civil tort litigation.

Defendant filed the instant Motion reasserting the same arguments previously rejected by this Court. Plaintiffs again opposed. On June 11, 2026, the Court issued its Order Denying the Ex Parte Application, disposing of the matter on the merits.

Analysis

Defendant's present Motion is procedurally improper and substantively without merit.

First, the Motion is **moot**. This Court has twice ruled on this precise issue. The doctrine of law of the case bars relitigation of questions expressly decided in prior orders. Defendant's repeated filings constitute an improper attempt to circumvent the Court's prior rulings through serial motions. The Court will not entertain successive motions for identical relief.

Second, Defendant's "Objection" to the Court's June 11, 2026 Order is procedurally improper and has not been considered by the Court. Litigants may not object to interlocutory orders; appropriate appellate remedies exist for parties aggrieved by adverse rulings.

The Court notes that Defendant appears *pro se*. While the Court affords latitude to self-represented parties, Defendant is hereby placed on notice that she will be held to the same standards of compliance with the Code of Civil Procedure, Rules of Court, and Local Rules as attorneys admitted to practice before this Court. The Court expects strict adherence to procedural requirements governing motion practice. Failure to comply with these standards may result in sanctions, including but not limited to monetary penalties and the striking of pleadings.

Ruling

1. For the foregoing reasons, Defendant's Motion to Proceed Anonymously is, again, **denied**.
2. Plaintiff's counsel shall prepare and e-file a proposed order conforming to this tentative ruling, attaching this tentative ruling, no later than five (5) days after the hearing.

12. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO DEBRA R. BELOTT, ESQ.
FILED BY: CHEVRON U.S.A. INC

TENTATIVE RULING:

Summary

This tentative ruling applies to Lines 12 and 13. Defendant Chevron, et. Al ("Chevron") filed a Notice of Hearing and Motion for Debra R. Belott, Esq. and Mikayla Paolini, Esq. to be admitted as Counsel *Pro Hac Vice*. These Motions are unopposed and are **granted**. No appearance is required at the hearings on June 24, 2026.

Background

On December 31, 2025, Defendant filed Notice of Hearing, through Jones Day, on Verified Application for Admission of Debra R. Belott and Mikayla Paolini to the Bar of this Court *Pro Hac Vice* ("Motion"). The Motions were supported by verified applications and declarations. The Court did not receive timely opposition to these Motions.

Analysis

California Rules of Court (CRC) Rule 9.40 allows this Court to grant a written application for leave to appear as Counsel *Pro Hac Vice* to an applicant who is not a member of the State Bar of California, but who is admitted into and is in good standing with the highest court of any other state. Upon review, the Court finds that proposed pro hac vice counsel's applications comply CRC Rule 9.40.

After considering the moving papers, and applying the relevant law, the Court makes the following findings and orders.

Ruling

1. Defendant's motion is **granted**. Debra R. Belott, Esq. and Mikayla Paolini, Esq. to be admitted as Counsel *Pro Hac Vice* for the duration of this case.
2. Defendant's Counsel is ordered to prepare and e-file proposed orders conforming to this ruling, attaching a copy of this ruling, no later than five (5) days after the date of this hearing, and to also serve the California State Bar with these orders.
3. No appearance is required on June 24, 2026.

13. 9:00 AM CASE NUMBER: MS5031
CASE NAME: PETITION OF: PARAQUAT CASES
HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE AS TO MIKAYLA PAOLINI, ESQ.
FILED BY: CHEVRON U.S.A. INC.

TENTATIVE RULING:

See Line 12.

14. 9:00 AM CASE NUMBER: MSC21-01757
CASE NAME: MARSHA TILLER VS U.S. BANK
HEARING ON SUMMARY MOTION FILED BY DEFENDANT, VALUATION ONE, INC
FILED BY: VALUATION ONE INC A CALIFORNIA CORPORATION
TENTATIVE RULING:

Before the Court is Defendant Valuation One, Inc.'s Motion for Summary Judgment or Adjudication ("MSJ"). The MSJ is **denied** as explained below.

Timing of Filing and Service of Motion

On January 20, 2026, the Court issued a Notice of Hearing and Order on Motion for Summary Judgment ("Notice of Hearing") reserving May 20, 2026, as the hearing date for Defendant Valuation One Inc.'s MSJ. (The date was later moved to June 24, 2026 pursuant to an email request by Valuation One.) The Notice of Hearing indicated that Defendant was to file its motion "within 7 calendar days of this order." (all caps removed.)

On January 26, 2026, Defendant filed a Notice of Motion and Motion for Summary Judgment or Adjudication ("Notice"). The Notice indicated that the moving papers in support would be "timely filed at a later date...." No substantive papers were filed at that time.

Thereafter, on April 1, 2026, Valuation One filed an Amended Notice of Motion and Motion for Summary Judgment or Adjudication indicating that the hearing would be held on June 24, 2026. Again, no substantive papers were filed. The Proof of Service filed that same date confirms only the Amended Notice was served.

On Monday, April 6, 2026, Defendant filed its memorandum of points and authorities, separate statement, request for judicial notice, declaration of Timothy Thibodeaux, and appendix of exhibits in support of its MSJ. The proof of service indicates that those documents were served on Saturday, April 4, 2025.

Service Requirements for Summary Judgment Motions

Code of Civil Procedure section 437c(a) provides, in pertinent part: "Notice of the motion **and supporting papers** shall be served on all other parties to the action at least 81 days before the time appointed for hearing. . . . If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc. § 437c(a)(2) emphasis added.) The summary judgment statute does not specifically address electronic service of notice.

California Code of Civil Procedure section 1010.6, which relates to electronic service of documents, states, in pertinent part that "[a]ny period of notice, which time period or date is prescribed by statute or rule of court, shall be extended after service by electronic means by two court days...." The statute specifically states that this extension does not apply to extend the time for filing: (1) a notice of intent to move for a new trial; (2) notice of intention to move to vacate judgment under Section 663a; or (3) a notice of appeal. (Cal. Code Civ. Proc. § 1010.6 (a)(3)(B). As a summary judgment motion is not excluded from this list, an extra two days needs to be added to the notice period for such

motions. (*Cole v. Superior Court* (2022) 87 Cal.App.5th 84, 87-88.)

Courts have concluded the minimum notice period, plus additional notice depending on the manner of service of the notice of the motion, cannot be waived or reduced by the Court. (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115 [“The subdivision does not contain any language authorizing courts to shorten the 75-day notice period.”].) (See also *Urshan v. Musicians’ Credit Union* (2004) 120 Cal.App.4th 758, 768 [“[T]he express mandatory language of Code of Civil Procedure section 437c, subdivision (a) makes clear the Legislature intended to deprive trial courts of the power to shorten the notice period for hearing summary judgment motions.”].)

“Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition.” (*McMahon*, supra, 106 Cal.App.4th at 117-18.)

The opposing party does not have to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267.) While cases have found a waiver when a party files a substantive opposition to a motion in the context of other motions, courts have generally found that ***in the context of an MSJ***, waiver of the minimum notice “should only be based on the affirmative assent of the affected parties.” (*Urshan*, supra, 120 Cal.App.4th at 768.) “In sum, the statutory language and existing case law lead [] to the conclusion a trial court does not have authority to shorten the minimum notice period for summary judgment hearings absent the express consent of the parties.” (*Ibid.*)

Additionally, it is improper for a court to merely continue the hearing date any additional days required to meet the minimum notice period. In *Robinson*, the defendants filed and mail served an MSJ on January 26, 2007 with a hearing date of April 12, 2007 – 76 days after the date of mailing. It was also only 18 days before trial – which was a separate issue. (*Robinson* 168 Cal.App.4th at 1260.) Plaintiff opposed arguing in part that the hearing had to be set 80 days after mail service (75-days + 5 for mail service.) At the hearing, the Court ‘faulted defendants for ... failing to serve the mailed motion at least 80 days before the hearing,’ and continued the hearing for 4-days to compensate. (*Ibid.*)

The Court of Appeal, in finding the trial court acted improperly, noted that the 76-day notice was invalid, and the trial court “had no authority to continue the hearing a mere four days” on the hearing date. (*Id.* at 1267.) “At that point, the notice period had to begin anew, and 75 days is mandatory where notice is given personally.” (*Id.* at 1268.) “If the trial court did not want to continue the trial date for the necessary amount of time, it could have taken the motion off calendar. The four-day continuance was a violation of due process and an abuse of discretion.” (*Ibid.*)

Calculations Applicable Here

The hearing for Defendant’s MSJ was noticed for June 24, 2026. Eighty-one days prior to that date is Saturday, April 4, 2026. Adding two additional days for electronic service means that the MSJ was

required to be served on or before April 2, 2026. Valuation One's Proof of Service indicates that the supporting papers were served on April 4, 2026 – two days after the required deadline.

Not only did Plaintiff not consent to a shortened notice period for Valuation One's MSJ, but she also specifically objects to the lack of the minimum statutory notice. (Opp. at III B.)

Conclusion

Valuation One failed to provide the required minimum statutory notice. As the required notice can only be waived if the opposing party specifically consents to lesser notice and Plaintiff does not so consent, the MSJ is **denied**.

15. 9:00 AM CASE NUMBER: MSC21-02685

CASE NAME: GOEDKEN VS. EAST BAY INTEGRATED CARE

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT**

FILED BY: GOEDKEN, CHELCIE M

TENTATIVE RULING:

Summary

Plaintiffs Chelcie Goedke and Hope Hilton ("Plaintiffs") Motion for Preliminary Approval of Class Action and PAGA Settlement is granted as set forth in this tentative ruling. No appearance is required at the hearing on June 26, 2026.

Background

Plaintiffs Chelcie M. Goedken and Hope Hilton seek preliminary approval of a class action and PAGA settlement with Defendant East Bay Integrated Care, Inc., a California hospice care provider ("Defendant"). Goedken worked as an hourly, non-exempt RN Case Manager from August 2020 to March 2021, and Hilton worked as an hourly, non-exempt Spiritual Care Coordinator from October 2020 to July 2021. Goedken filed separate class and PAGA actions on December 28, 2021, and Hilton was added as a named plaintiff in October 2023. The operative complaint alleges violations of the California Labor Code and Business and Professions Code Section 17200, including unpaid overtime, meal and rest period premiums, minimum wages, untimely payment of wages, non-compliant wage statements, failure to maintain payroll records, and unreimbursed business expenses.

The proposed settlement creates a non-reversionary Gross Settlement Amount of \$945,000. The settlement class consists of approximately 600 current and former non-exempt, hourly employees who worked for Defendant in California during the Class Period from December 28, 2017 through September 12, 2025. From the gross amount, the settlement allocates \$315,000 in attorneys' fees, up to \$30,000 in litigation costs, approximately \$11,000 in settlement administration costs, \$20,000 in total Class Representative Enhancement Payments (\$10,000 each to Goedken and Hilton), and a \$40,000 PAGA settlement, leaving a Net Settlement Fund of \$529,000 for distribution to participating class members.

Class Members will receive automatic *pro-rata* payments from the Net Settlement Fund based on the number of weeks worked during the Class Period, without submitting claim forms. This allocation

method provides proportionally larger payments to employees who worked longer durations. The average net recovery is approximately \$880 per Class Member. The settlement provides for conditional certification of the Settlement Class, appointment of Goedken and Hilton as class representatives, appointment of Capstone Law APC and Lawyers for Justice, P.C. as Class Counsel, and appointment of CPT Group, Inc. as Settlement Administrator.

The PAGA component covers all non-exempt, hourly employees who worked during the PAGA Period from December 28, 2020 through September 12, 2025. Of the \$40,000 PAGA settlement, 75% (\$30,000) will be paid to the Labor and Workforce Development Agency, and 25% (\$10,000) will be distributed to PAGA Members on a pro-rata basis according to weeks worked during the PAGA Period. Like the class component, PAGA payments will be automatic without requiring claim submissions.

In exchange for the settlement consideration, participating Class Members will release all claims arising from the alleged Labor Code violations, including claims for unpaid overtime, meal and rest period premiums, minimum wages, untimely wages, non-compliant wage statements, record-keeping violations, unreimbursed business expenses, and UCL claims. PAGA Members will similarly release PAGA claims arising during the PAGA Period.

The settlement was negotiated at arm's length following a mediation on July 11, 2025, before Daniel Turner, Esq., with continued guidance through a mediator's proposal. Plaintiffs calculate Defendant's realistic exposure at trial at approximately \$3.54 million, including estimated liability for off-the-clock work, meal and rest period violations, overtime, business expenses, wage statements, final pay violations, and PAGA penalties. Defendant maintains it has always maintained legally compliant employment policies and denies any liability or wrongdoing.

Defendant disputes liability on multiple grounds, contending that its policies prohibit off-the-clock work and that individualized inquiries would be required to determine whether any violations occurred. Defendant also relies on *Brinker Restaurant Corp. v. Superior Court* (citation omitted) to assert it had no obligation to guarantee meal periods were taken. The Parties agree that the settlement represents a fair, adequate, and reasonable compromise that avoids the risks of continued litigation, including potential denial of class certification, trial uncertainty, and appellate reversals, while providing immediate relief to Class Members.

Analyses

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th

1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, \$315,000, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment.” (*Id.*, at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, litigation costs in the amount of \$30,000 and the requested representative payment of \$10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

1. The Court finds that this settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. The motion is **granted**.
2. Counsel is directed to prepare an order reflecting this ruling, attaching a copy of this tentative ruling, and to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
3. Plaintiffs’ counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384(b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorney’s fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of the remaining 5% fees through an unreported minute order without hearing upon review and approval of the compliance statement.
6. No appearance is required at the hearing on June 24, 2026.
7. The case management conference calendared for July 24, 2026 is **vacated**.

16. 9:00 AM CASE NUMBER: MSC22-00021
CASE NAME: O'CAIN, JR. VS SHIELDS NURSING CENTER, INC.
HEARING ON SUMMARY MOTION FILED BY DEFENDANT WILLIAM SHIELDS
FILED BY: SHIELDS, WILLIAM
TENTATIVE RULING:

The motion for summary judgment or, in the alternative, summary adjudication, filed by defendant, William M. Shields, is **denied**, as discussed below.

I. Background

Plaintiff Otis L. O'Cain, Jr., is a 48-year-old, legally blind man, with a history of multiple medical issues. (Request for Judicial Notice, hereinafter "RJN," Ex. A, Complaint, ¶11.) Plaintiff was admitted to Shields Richmond Nursing Center for skilled rehabilitation services on June 21, 2020, left the facility for the hospital on August 26, 2020, and was re-admitted to the facility, where he remained from September 3rd through September 25, 2020. (*Id.* at ¶13.) In January 2022, plaintiff filed this lawsuit against defendants, Shields Nursing Center, Inc. (also "SNC") and William M. Shields, alleging (1) Negligence, (2) Negligence Per Se, (3) Abuse of a Dependent Adult, and (4) Negligent Infliction of Emotional Distress.

In connection with the individual defendant, plaintiff's complaint alleges Shields was the administrator of the Richmond facility during the time plaintiff resided there and oversaw the operations of the facility. (RJN Ex. A, Complaint, ¶8.) Plaintiff alleges Shields knew he was dependent on defendants for supervision, close monitoring, and medical attention. (*Id.* at ¶15.) Despite this knowledge, plaintiff alleges Shields failed to provide the necessary attention and care required, which proximately caused plaintiff's falls, infections, and subsequent amputation of his toes. (*Ibid.*)

Among the allegations of subpar care, plaintiff alleges "Defendants lacked sufficient number of trained staff." He alleges this lack of staff caused his diabetes to worsen and resulted in amputation of his toes because his condition was not properly assessed, monitored, and/or cared for. (RJN Ex. A, Complaint, ¶20; see also ¶¶21-22.)

Defendants initially responded to the complaint by unsuccessfully moving to compel arbitration. Defendants appealed the ruling denying their motion and the case was stayed from approximately April 2022 until July of 2023. Soon after the stay was lifted, defendants filed a demurrer and motion to strike. Parties stipulated to continue the date for hearing on those motions and, before they could be heard, the corporate defendant (Shields Nursing Center, Inc.) declared bankruptcy.

The case was again stayed as to the corporate defendant, but it was permitted to proceed as to the individual defendant, William Shields, who answered the complaint in January of this year (2026). In his answer, Shields generally denied the material allegations of plaintiff and included 43 "affirmative defenses."

Shields now moves for summary judgment, arguing that none of the causes of action can succeed because plaintiff is unable to demonstrate one or more elements of each cause of action. As a fifth issue for summary adjudication, Shields also contends that punitive damages are unwarranted here. In support of the motion, defendant submits a memorandum of points and authorities, a separate statement of undisputed material facts, a request for judicial notice, Shields' own declaration, and a declaration from counsel, attaching excerpts from plaintiff's deposition.

Plaintiff opposes the motion, arguing both that defendant fails to meet his initial burden to show entitlement to judgment as a matter of law, and also that whether defendant exercised sufficient control to cause plaintiff's harm is a triable issue of material fact. In support of the opposition, plaintiff offers a memorandum, a response to Shields' separate statement, plaintiff's own declaration, a declaration from his former partner, Angel Davis, stating she directly communicated her concerns to Shields, and a declaration from counsel, Donavon Sawyer, attaching, *inter alia*, excerpts of defendant's deposition transcript.

On reply, defendant objects to the opposition declarations and provides a reply to plaintiff's response to the separate statement.

II. Evidentiary Matters

In support of his motion, defendant requests judicial notice of the complaint, answer, and other documents filed in this case. The request is **granted**.

While plaintiff asserts various objections in his response to the separate statement, there is no authority providing for "objections" to facts; facts can only be disputed or undisputed. (See Code Civ. Proc, § 437c, subd. (b)(3); Cal. Rules of Court, Rule 3.1350(f)(2); Cal. Rules of Court, rule 3.1354, subd. (b) [requiring objections to be filed separate document subject to certain formatting and procedures].)

With respect to defendant's evidentiary objections to plaintiff's evidence, the Court rules as follows:

Declaration of Angel Davis in Support of Opposition

1. Overruled
2. Overruled
3. Overruled

Declaration of Otis L. O'Cain in Support of Opposition

1. Sustained – legal conclusion / improper lay opinion

Declaration of Donavon Sawyer in Support of Opposition

1. Sustained – lacks foundation
2. Sustained – lacks foundation, hearsay
3. Sustained – lacks foundation, hearsay
4. Sustained – lacks foundation
5. Sustained – lacks foundation
6. Sustained – lacks foundation, hearsay
7. Overruled

III. Standard

To be entitled to judgment as a matter of law, a defendant must show by admissible evidence that the action has no merit. (Code Civ. Proc., § 437c, subd. (a).) A defendant can meet this burden by demonstrating one or more elements cannot be established, or by showing a complete defense. (Code of Civ. Proc., § 437c, subd. (o).) The scope of the moving party's initial burden is "framed by the

pleadings.” (*Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102.) Once the moving defendant has met that burden, the burden shifts to the plaintiff to show via specific facts that a triable issue of material fact exists. (Code of Civil Procedure § 437c, subd. (p)(2).) A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c (f)(2).)

IV. Discussion

A. First Cause of Action: Negligence

Negligence requires plaintiff to show a legal duty to use due care, a breach of such legal duty, and that the breach was the proximate or legal cause of the resulting injury. (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917.)

Shields moves for adjudication of the first cause of action on the basis that there is “no evidence” that Shields “personally participated in, authorized, directed, ratified or took any action with respect to plaintiff’s care that caused or contributed to the alleged injuries.”

“[An] officer or director will not be liable for torts in which he does not personally participate, of which he has no knowledge, or to which he has not consented. . . . While the corporation itself may be liable for such acts, the individual officer or director will be immune *unless* he authorizes, directs, or in some meaningful sense actively participates in the wrongful conduct.” (*Frances T. v. Village Green Owners Assn.* (1986) 42 Cal.3d 490, 503-504, emphasis added.) Unlike the inquiry for “piercing the corporate veil,” the issue is individual participation. (*Ibid.*)

Plaintiff alleges that statutory and regulatory violations relating to defendant’s skilled nursing facility care caused plaintiff harm. (SSUMF, Fact No. 31, and plaintiff’s response.) Shields sets forth multiple ways in which he was not involved in the care of plaintiff. The list is comprehensive, including not serving as administrator of the facility in 2020 (SSUMF, Fact No. 32), not “personally” violating any statute or regulation (SSUMF, Fact No. 36), not providing “direct care” or “hands-on” care to plaintiff (SSUMF, Fact Nos. 34-35, 37, 119), etc. This list, while lengthy, does not preclude making any policy decisions with respect to the company.

On the contrary, as noted *Frances T., supra*, because directors are policy-makers who direct and ultimately control corporate conduct, they individually owe a duty of care, independent of the corporate entity's own duty, to refrain from acting in a manner that creates an unreasonable risk of personal injury to third parties. (*Frances T., supra*, 42 Cal.3d at 504.) This prevents a director from inflicting injuries upon others and then escaping liability behind the shield of his or her representative character, even though the corporation might be insolvent or irresponsible. (*Ibid.*) Director status therefore neither immunizes a person from individual liability nor subjects him or her to vicarious liability. (*Frances T., supra*, 42 Cal.3d at 505.) The cases cited by defendant generally support this neutral standard and focus the inquiry on the participatory role of the individual.

Here, defendant provides plaintiff’s responses to deposition questions wherein plaintiff provides little basis for finding a duty or breach by Shields himself. However, to the extent corporate policy may have been the underlying reason for plaintiff’s claims, the cause of action has not been shown to lack merit.

Shields states he “never authorized, directed, ratified or approved any policy or practice” at the facility “that required or encouraged staff to deny necessary care to residents, including Mr. O’Cain, or to violate applicable laws or regulations concerning staffing, safety, or resident care.” Shields states he relies on others to carry responsibilities related to staffing, safety, and resident care

in their day-to-day work. To the extent the declaration seeks to disclaim any role whatsoever in staffing decisions, that particular statement is not made. To the extent the conclusory statements indicate lack of notice of the particular conduct that harmed plaintiff, the Court is not bound to accept an undisputed declaration by an individual as to his or her state of mind. (Code Civ. Proc., § 437c (e).) Further, “summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact.” (Code Civ. Proc., § 437c (c).)

Even if defendant successfully showed entitlement to judgment via his declaration, there are material disputes of fact here. (See, e.g., SSUMF, Fact Nos. 115, 117.)

Shields’ own deposition testimony mentions making “rounds” at the facility, which undermines any contention that he was never involved with the facility directly. The facility was further cited for at least one staffing violation. While plaintiff does not provide any specific date of a citation, Shields himself acknowledged its existence at deposition, yet fails to establish why it is irrelevant, or that Shields was not personally involved in any staffing policies that might underlie plaintiff’s claims (or the regulatory citation). Shields himself states that he is “involved at a high level in ensuring that [SNC] facilities are appropriately resourced and staffed [...]” (Declaration of William M. Shields, Jr. in Support of Motion, hereinafter “Shields Decl.,” ¶11.) This involvement is consistent with Shields’ deposition testimony wherein he unequivocally answered that he was responsible for “making sure that the facility is staffed properly.” (Declaration of Donavon Sawyer in Support of Opposition, Ex. 7 at 24:11-14.) The theory is also embraced by the complaint, which alleges that “each of the Defendants owed a duty to use ordinary care and such other care as is required by law regarding the care, the provision of [...] adequate staff [...]” (RJN Ex. A, Complaint, ¶25.) This is sufficient to overcome summary adjudication with respect to negligence, including both the duty and causation arguments asserted by defendant.

Plaintiff further provides a declaration from Angel Davis who states she contacted Shields directly about the care plaintiff was receiving. (Declaration of Angel Davis in Support of Opposition, ¶13.) This conflicts with statements by Shields that he lacked any “contemporaneous personal knowledge” about plaintiff’s care, and that, to the extent he did investigate one fall, there was “not anything problematic.” (Shields Decl., ¶¶10, 55.) This, in addition to the above staffing question, is also sufficient to raise a disputed issue of fact.

Summary adjudication is denied with respect to the first cause of action for negligence.

B. Second Cause of Action: Negligence Per Se

As the moving papers state, negligence per se does not create an independent cause of action. (Memorandum of Points and Authorities in Support of Motion, 13:2-6.) Accordingly, the discussion above equally applies to this cause of action. Plaintiff alleges inadequate staffing. Defendant admits there was at least one citation issued by the relevant regulatory authority. As a corporate director and officer, it appears at least possible that Mr. Shields bears responsibility for decisions related to adequate staffing. On negligence per se, summary adjudication is denied.

C. Third Cause of Action: Neglect Under Elder Abuse and Dependent Adult Civil Protection Act

In order to obtain the remedies available in Cal. Welf. & Inst. Code § 15657, a plaintiff must demonstrate by clear and convincing evidence that defendant is guilty of something more than negligence; he or she must show reckless, oppressive, fraudulent, or malicious conduct as outlined in

Civil Code section 3294. (*Delaney v. Baker* (1999) 20 Cal. 4th 23, 31.) The latter three categories involve intentional, willful, or conscious wrongdoing of a despicable or injurious nature. (*Ibid.*, citing Cal. Civ. Code §3294(c).) Recklessness refers to a subjective state of culpability greater than simple negligence, which has been described as a deliberate disregard of the high degree of probability that an injury will occur. (*Ibid.*) Recklessness, unlike negligence, involves more than inadvertence, incompetence, unskillfulness, or a failure to take precautions but rather rises to the level of a conscious choice of a course of action with knowledge of the serious danger to others involved in it. (*Id.* at 31-32.)

Defendant's motion quotes subdivision (b) of Civil Code, section 3294, and argues that Shields cannot be held liable for the acts of others. As discussed above, there are possible avenues of liability here that do not include such a vicarious liability finding. One such example is the participation of Shields in any understaffing policies that might have contributed to plaintiff's claims. Because the motion papers leave open disputes of fact related to this possibility, as mentioned above with respect to negligence, summary adjudication is denied.

D. Fourth Cause of Action: Negligent Infliction of Emotional Distress

Similar to the above discussion of negligence per se, there is no independent tort of negligent infliction of emotional distress; rather, the tort is negligence. (*Ragland v. U.S. Bank National Assn.* (2012) 209 Cal.App.4th 182, 205.) For the reasons discussed above in regard to that cause of action, summary adjudication is denied with respect to Negligent Infliction of Emotional Distress.

E. Punitive Damages

While the Court maintains some degree of skepticism that plaintiff can show entitlement to punitive damages in light of the clear and convincing standard, such damages are warranted where a plaintiff shows liability under the Elder Abuse and Dependent Adult Civil Protection Act. Because the motion is denied with respect to that cause of action, the motion is also denied with respect to punitive damages.

17. 9:00 AM CASE NUMBER: MSC22-00247
CASE NAME: LAS MONTANAS MARKET VS. GUTIERREZ
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT**
FILED BY: LAS MONTANAS MARKET, INC
TENTATIVE RULING:

Notice to withdrawal Motion to Enforce Settlement Agreement has been filed on the case. This hearing has been **vacated**. No appearance is required on June 24, 2026.

18. 9:01 AM CASE NUMBER: C23-02575

CASE NAME: MATTHEW ANDRADE VS. CHRIS PETLOCK

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER PRODUCTION AND RESPONSES TO REQUESTS FOR PRODUCTION, SET TWO, AND FOR MONETARY SANCTIONS IN THE AMOUNT OF \$12,837.50**

FILED BY: ANDRADE, MATTHEW

TENTATIVE RULING:

Summary

Plaintiff's Motion to Compel Further Responses and Production of Documents Set Two and for Monetary Sanctions is vacated from this Court's calendar and is referred to a Discovery Referee as set forth herein. No appearance is required at the hearing on June 24, 2026.

Background

This is an employment action where Plaintiff Matthew Andrade, a custodial employee, claims that Defendants Chris Petlock and the Pleasant Hill Recreation and Park District ("Defendants") have conducted acts that constitute harassment, age discrimination, retaliation, and wrongful termination. On February 18, 2026, Plaintiff filed this discovery motion, which is the third motion pursued by Plaintiff. The Court finds that the tenor between the Parties and the relationship between Counsel is strained. This is the third discovery motion between the Parties, and the Court finds that Counsel are generally unable to meet and confer to arrive at resolutions informally.

Analysis

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C]. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before Plaintiff filed this third motion.

On motion of a party, stipulation of the parties, or sua sponte, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Code Civ. Proc. §§ 639(a)(5), (b)–(d); Cal. Rules of Court, rules 3.920–3.932; *Lu v. Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions, the existing disputes raised by the pending discovery motions, and the nature of the underlying legal issues

require the appointment of a Discovery Referee. Code Civ. Proc. § 639(a)(5) states: “When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon.”

The Court finds here that a discovery referee is necessary to hear and determine all disputes relevant to discovery. Again, this is the third motion filed by Plaintiff. These motions and oppositions filed to date consist of nearly 350 pages. Defendants are also pursuing a Motion for Summary Judgment. The filings alone in that Motion consist of several hundred pages. This Department manages a docket of 2700 cases, including complex, class action, PAGA, CEQA and construction defect cases. The civil law division of this Court manages 25,000 cases over six bench officers. The Court finds that Counsel are unable to effectively meet and confer to arrive at an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and rulings.

Ruling

1. A Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Code Civ. Proc. § 639.
2. The Discovery Referee shall hear all disputes relevant to discovery in this case and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear this Motion, and all discovery motions subsequently filed from this date forward. The hearing on this discovery motion is vacated from Department 16's calendar for June 24, 2026 and is referred for further hearing to the Discovery Referee.
3. By no later than June 29, 2026 the Parties are ordered to meet and confer pursuant to Code Civ. Proc. § 639(b) or (c) and shall submit a stipulation and proposed order listing the proposed Discovery Referee to the Court along with the proposed referee's curriculum vitae and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by June 29, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, emailed to dept16@contracosta.courts.ca.gov by Wednesday, July 1, 2026. The Court will select one of the proposed referees by minute order. Code Civ. Proc. § 640(b). The Discovery Referee will be requested to sign the Judicial Council ADR-110 Form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 Form.
4. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Plaintiff's Counsel are directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc., § 639, that conforms to this ruling, approved as to form by Defendants' Counsel, no later than five (5) days after the date of

this order. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.

6. The Clerk of Court shall vacate Plaintiff's discovery motion calendared for June 24, 2026. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.

7. The Parties are ordered to meet and confer and take all necessary steps to implement this order forthwith.

8. No appearance is required at the hearing on June 24, 2026.

19. 9:01 AM CASE NUMBER: C25-00694

CASE NAME: ELIZABETH HILAMAN VS. MCDONALD'S USA, LLC

***HEARING ON MOTION FOR DISCOVERY AN ORDER QUASHING SUBPOENA, OR IN THE ALTERNATIVE, FOR PROTECTIVE ORDER**

FILED BY: MCDONALD'S USA, LLC

TENTATIVE RULING:

Summary

Defendant McDonald's Corporation filed a motion to quash two subpoenas on March 23, 2026, or, in the alternative, requested a protective order, and monetary sanctions in the amount of \$1,925.00. The motion is denied as **moot**.

The Court is inclined to grant, *sua sponte*, Plaintiff's attorney's fees and costs for having to prepare a response and briefing for an unnecessary motion that should have been removed from this Court's already impacted motion calendar. Defendant's counsel is ordered to appear by Zoom and to show cause as to why counsel failed to withdraw these Motions from the Court's calendar upon withdrawal of the subpoenas by Plaintiff.

Background

According to the filings submitted to the Court, on April 23, 2026 Plaintiff Elizabeth Hilaman withdrew the two subpoenas subject to Defendant's Motion to Quash. Plaintiff thereafter informed Defendant that the subpoenas had been withdrawn and requested that Defendant take its motion off calendar. Defendant did not withdraw this motion.

As the subpoenas were withdrawn prior to hearing, there is no subpoena remaining for this Court to quash and no basis for a protective order. Likewise, sanctions are unwarranted. Plaintiff voluntarily withdrew the subpoenas after Defendant raised objections, thereby providing Defendant the precise relief it requested during the meet-and-confer process. Defendant cannot demonstrate bad faith, oppression, or a lack of substantial justification as required under Code of Civil Procedure section 1987.2.

Ruling

1. Defendant's Motions are denied as **moot**.
2. Plaintiff's Counsel is ordered to prepare a brief declaration outlining fees and costs for having

to prepare an opposition to this Motion.

3. Defendant's Counsel is ordered to appear via Zoom on June 24, 2026 and is ordered to show cause why counsel did not withdraw this Motion upon withdrawal of the subpoenas by Plaintiff and why the Court should not require Defendant to pay for Plaintiff's fees and costs for having to prepare a briefing and opposition to an unnecessary motion.

20. 9:01 AM CASE NUMBER: C25-01525

CASE NAME: MARAT VALIULLIN VS. DAVID STALLWORTH

***HEARING ON MOTION FOR DISCOVERY QUASH DEPOSITION SUBPOENAS FOR PRODUCTION OF BUSINESS RECORDS ISSUED TO THIRD PARTY PROVIDERS, OR IN THE ALTERNATIVE, FOR LIMITING THE SCOPE OF THE SUBPOENAS**

FILED BY: VALIULLIN, MARAT

TENTATIVE RULING:

Summary

Plaintiff Nataliya Muravskaya's Motion to Quash Deposition Subpoenas or, in the alternative, to limit their scope, is **granted** in part as set forth herein.

Background

This case arises out of a motor vehicle accident that occurred on March 31, 2024. Plaintiffs allege that Defendant David Lee Stallworth operated his vehicle negligently, knowing that he suffered from epileptic seizures, one of which caused the incident. Nataliya claims to have suffered injuries from this accident and received treatment at Kaiser Hospital. Defendant issued subpoenas demanding over ten years of medical, billing, insurance, and administrative records (from January 1, 2014 to present) for all plaintiffs. Prior to the production date, Plaintiff's counsel served objections and engaged in meet-and-confer discussions.

Nataliya now seeks to quash or limit deposition subpoenas for records issued by Defendant to third-party medical providers regarding her records. While co-plaintiffs Marat Valiullin and Ruslan Valiullin reached agreements limiting their records to nine years and four years prior to the accident respectively, Nataliya Muravskaya's objection to the ten-year scope remained unresolved.

Despite her offer to produce five years of records (later refined to three years prior to the accident), defense counsel rejected this limitation, citing her age and claimed injuries. Plaintiff asserts that these subpoenas should be quashed because they (a) demand an overbroad ten-year sweep of unrestricted medical history; (b) lack any limitation by body part, diagnosis, or condition; (c) constitute an improper wholesale production of confidential medical information unrelated to the specific injuries placed at issue in the litigation; (d) violate Plaintiff's constitutional right to privacy under Article I, Section 1 of the California Constitution; and (e) fail to meet the narrow tailoring requirements under California law.

In the alternative, Plaintiff requests an order limiting the scope of Nataliya's records to those (a) specifically relating to atypical chest pain, headaches, vertigo, and depression allegedly arising from the collision; (b) within a temporal scope of March 31, 2021 through March 31, 2026 (three years prior to and two years following the incident); and (c) excluding unrelated medical conditions, specialty departments, and administrative records not directly relevant to the claimed injuries.

Plaintiff asserts that the limitations reached for co-plaintiffs Marat Valiullin (records from March 31, 2017 to present) and Ruslan Valiullin (records from March 31, 2020 to present) were stipulated to and remain in effect.

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. A principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court* (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.* (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

With respect to medical, billing records and other consumer records sought, there is no disagreement that Plaintiff's statutorily (Evid. Code, § 990 et seq.) and constitutionally (Cal. Const., art. I, § 1) recognized rights to maintain the privacy of her medical records are not waived in their entirety by the allegations she has made. (E.g., *Britt v. Superior Court* (1978) 20 Cal.3d 844, 862-864; Also, *In re Lifschutz* (1970) 2 Cal.3d 415; *Lantz v. Superior Court* (1994) 28 Cal.App.4th 1839, 1853-1857.)

However, to the extent that Nataliya has placed her physical condition in issue and claims that she has sustained injuries as a result of this alleged incident, she has given up the right to shield from the Defendant her medical records that reasonably relate to the claim she has asserted and for the disclosure of which there is a compelling need that outweighs the plaintiff's interest in preserving her privacy. (*Lantz v. Superior Court*, *supra*, at pp. 1854-1855, 1857.) Since there is a dispute concerning not only the extent of Plaintiff's injuries, but their causation, Plaintiff's contention that discovery must be limited to a temporal scope is a legitimate argument.

After reviewing the papers submitted by counsel and plaintiff, and after applying the applicable statutory and decisional authority, the Court finds good cause to deny Plaintiff's Motion to Quash in part and grant it in part.

Ruling

1. The timeliness argument raised by Defendant is **waived** by meeting and conferring.
2. Nataliya's Motion to Quash is **granted** in part. The production of records sought through subpoena shall be limited to the period of August 10, 2020 (when Nataliya was involved in a prior motor vehicle accident) to present. The records shall be further limited to any medical treatment for injuries arising out of the August 10, 2020 and March 31, 2024 accidents. The entities responding to the subpoena shall limit production of records to treatment for injuries arising out of these motor vehicle accidents, and any related consultations by any departments or specialists, and shall also include medical bills. No other documents shall be produced without further order of the Court.
3. As to Plaintiffs Marat Valiullin and Ruslan Valiullin, the Court **orders compliance** with the stipulation entered by the Parties to limit the production of medical records from March 31, 2017 to the present for Marat, and from March 31, 2020 through the present for Ruslan.
4. Plaintiff's counsel shall prepare and e-file a proposed order conforming to this ruling, attaching a copy of this tentative ruling thereto no later than five court days from the date of this order.
5. Defendant's counsel shall re-issue subpoenas consistent with this order and shall withdraw those inconsistent with this order.
6. Each party shall pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

21. 9:01 AM CASE NUMBER: MSC21-01215
CASE NAME: LYNETTA WESTBROOK VS SAN PABLO HEALTH
***HEARING ON MOTION FOR DISCOVERY (CONTINUED FROM 3/18/26 *ON THE RESERVED ISSUES ONLY*) ABATE, OR ALTERNATIVELY, TO COMPEL JOINDER AND CONTINUE TRIAL**
FILED BY:
TENTATIVE RULING:
Counsel are ordered to appear to discuss the status of outstanding discovery referred to the Discovery Referee and to provide a status report on reserved issues.